

Europe and the Indo-Pacific: Convergence and Divergence in the Digital Order

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Cover

Three-dimensional render of global communications and networking in big city from an aerial view.

Executive summary

European and Indo-Pacific countries are caught in the middle of the mounting systemic rivalry between the United States and China. The growing competition between these two countries in the digital domain is manifesting in different areas, including export controls, technological standards and national industrial policies. However, considering the technological-innovation debate solely through the lens of US–China competition risks overlooking the approaches and responses that other actors – namely the European Union and Indo-Pacific countries – are pursuing to enhance and safeguard their national digital ecosystems.

Shifting the focus away from US–China technological competition, this IISS research paper looks at the approaches of the EU and Indo-Pacific countries in selected domains of the digital order, identifying patterns of convergence and divergence in this space. Locating common practices and bringing to light gaps in policy regulation could delineate key areas for further cooperation between the EU and Indo-Pacific countries.

Therefore, the purpose of this report is to bring attention to how the EU and Indo-Pacific countries have responded and continue to respond to four key areas of strategy, regulation and international cooperation within the digital order: 1) the protection of national critical infrastructure (NCI) 2) harnessing AI 3) the protection of national innovation ecosystems 4) and countering cyber disinformation. These areas were selected as they are particularly revelatory in terms of indicating countries' approaches to national resilience, competitiveness, prosperity and security. For each of the four domains, the analysis poses a number of questions in order to draw out key aspects of countries' approaches, such as each country's policy development; the governmental authorities and stakeholders involved; domestic debates over national security or prosperity; and partnerships and cooperation with other regional and international actors.

After examining EU responses in the four areas of policy regulation, the report studies those of 41

countries, overseas territories and entities in the Indo-Pacific, excluding China. To facilitate comparison, the countries analysed are grouped into four subregions: Southeast Asia, Northeast Asia, South Asia and Oceania. The assessment of these countries' responses relies on primary government-policy documents and secondary sources. The analysis also draws on insights from a workshop organised by the IISS, held in Singapore in Spring 2023, which brought together government officials and leading experts in this field.

With regards to the four domains, this report finds policy divergence in line with the examined countries' diversity of economic growth and levels of technological development and connectivity. Nevertheless, trends can be identified for Indo-Pacific countries at the subregional and regional levels, as well as similarities with the EU in several of the areas considered.

Regarding NCI, the report highlights discussions currently taking place at the minilateral level. These include only a minority of Indo-Pacific states. On the other hand, out of necessity the EU takes a supranational approach, having made progress on transboundary critical-infrastructure protection among member states. The EU and Indo-Pacific countries could exchange best practices for the protection of cross-border infrastructure and in order to enhance the resilience and protection of their NCI.

Concerning AI governance and the development of national AI strategies, several countries in the Indo-Pacific and the EU have made significant progress in AI regulation in recent years and are seeking cooperation in this domain with other governments at a regional and international level while also pursuing a leadership role in standard-setting. As several emerging and developing countries in the Indo-Pacific lag behind in regulating AI, this could provide an opportunity for EU and more developed Indo-Pacific countries to share best practices to facilitate the process towards AI regulation and the development of national AI strategies. To ensure wider inclusivity in the adoption of AI technology and

promote whole-of-society approaches to AI strategies, the EU and like-minded countries in the Indo-Pacific could build stronger ties with those countries predominantly concerned with prosperity (rather than security or ethical concerns). Additionally, while some obstacles to AI-strategy implementation derive from local contexts, countries across the analysed regions seem to share common challenges, such as unequal access to data, data security and national government-systems digitalisation, which points to the need for increased cooperation in this sphere.

Protection of national innovation ecosystems is a further area where the EU and Indo-Pacific countries present both similarities and differences. Like the EU, most Indo-Pacific countries participate in export-control regulation, and some have indicated their commitment to harmonise trade policies with international standards or in minilateral agreements on restricting exports of advanced technological components. On the other hand, Indo-Pacific governments' approaches to investment-screening mechanisms are less homogeneous than that of the EU's supranational regulations, targeting a range of different sectors but in some cases failing to thoroughly address critical sectors. The EU and more developed Indo-Pacific countries could redress the discontinuity

of foreign direct investment-screening mechanisms by exchanging best practices with the regional countries that take a predominantly prosperity-focused approach to national innovation and critical-infrastructure development, in order to help them develop national policies that can both protect national innovation strengths and support national socio-economic development.

Lastly, disinformation in the cyber domain is a phenomenon faced by all EU and Indo-Pacific countries. However, governments' responses differ greatly, ranging from fact-checking initiatives, legislation and the involvement of civil society and the private sector, to harsher measures like strengthening state control over the online domain. A further difference between the countries analysed is the origin of disinformation campaigns and fake-news proliferation: these activities can be traced back to domestic state and non-state actors in some instances, and to foreign perpetrators in others. To tackle this widespread and multifaceted phenomenon, states must first agree a clear definition of disinformation in the cyber domain. A definition could be the building-block of the necessary legislative and policy approaches to adopt effective countermeasures, facilitating a joint effort that would encompass the best practices from both the EU and Indo-Pacific countries.

Introduction

The systemic rivalry between the United States and China is increasingly expressed in the digital domain on a global basis, whether through export controls, competition over technological standards or national industrial policies. European and Indo-Pacific states currently find themselves in the middle of this competition. The European Union perceives its strengths as lying within the development of ethical technology and as a regulatory powerhouse focused on ensuring that digital and technological standards meet ethical requirements. While EU member states still retain some control over issues like investment-screening mechanisms, the EU has passed – at an increasingly significant rate – regulations that seek to protect European digital and technological strengths. However, these regulations do not always align with those of like-minded countries, which, although in agreement with the EU on many matters, still weigh the importance of national security or prosperity differently in their policy decision-making. There also remains friction between the US and EU over certain approaches to technology regulation and competition. Indo-Pacific states lack a homogenous approach even more. This is unsurprising – the numerous countries that make up the region vary widely in their economic growth, demographics and levels of technological development and connectivity. States in Southeast Asia, Northeast Asia, South Asia and Oceania all differ in their national strategies, regulations and willingness to cooperate internationally on issues related to technology and the digital order.

As such, there is a risk that viewing the global digital order solely through the lens of US–China relations and their respective approaches to digital and technological strategy, regulation and alignment overlooks the diverse set of responses from various countries in Europe and the Indo-Pacific. This report’s purpose, therefore, is to examine how the EU and individual Indo-Pacific countries have and continue to respond to four main areas of strategy, regulation and international cooperation within the digital order: national

critical-infrastructure protection; harnessing AI; the protection of national innovation ecosystems; and combatting cyber disinformation. This report takes a limited approach to aspects of the ‘global digital order’ due to limitations in scope. The four areas identified were chosen due to their importance to national resilience, competitiveness, prosperity and security.

In order to research these four topics for each country, the report examines the key policies and legislation in place and their associated definitions, the primary stakeholders involved and whether governments are currently cooperating with like-minded counterparts – in particular, European and Indo-Pacific states – in these areas of policy development. The research relies on primary government-policy documents and secondary sources where necessary. It also draws on insights from a closed-door workshop with government and expert participants from Europe and the Indo-Pacific, which was organised by the IISS in Singapore in 2023.

The report examines European policy through the lens of EU regulations in order to facilitate clearer cross-examination. Though the authors of this report acknowledge that in some instances EU regulation only provides guidelines or voluntary mechanisms for EU member states, these sources still indicate a general policy trend across the EU’s 27 member states. For the Indo-Pacific, the report examines 41 countries’ and overseas territories’ policies related to the four categories, excluding China. These are grouped per chapter into four subregions to facilitate inter-subregional comparisons: Northeast Asia, Southeast Asia, South Asia and Oceania.

In Northeast Asia, the report focuses on Japan, South Korea and Taiwan. In Southeast Asia, Brunei, Cambodia, Indonesia, Laos, Malaysia, Myanmar, the Philippines, Singapore, Thailand and Vietnam are examined. The report does not examine the Association of Southeast Asian Nations (ASEAN) as an entity, nor other Indo-Pacific subregional or regional groupings, in order to limit the report’s scope. An exception is made

for references to the participation of individual countries in minilateral groupings. In South Asia, the report examines Bangladesh, Bhutan, India, the Maldives, Nepal, Pakistan and Sri Lanka. Among the many differences that characterise these countries, one is the national approach to critical infrastructures. Oceania refers to Australia, Cook Islands, Fiji, French Polynesia, Guam, Kiribati, Marshall Islands, Micronesia, Nauru, New Caledonia, New Zealand, Palau, Papua New Guinea, Samoa, Solomon Islands, Timor-Leste, Tonga, Tuvalu and Vanuatu.

The report is divided into three sections. Firstly, in order to provide the European perspective, it examines

the EU's response to these four areas of policy and regulation. It then compares developments between Indo-Pacific subregions on the four areas in order to draw conclusions about the variety of developments across the region. It does this via four sections, each dedicated to one area of policy and regulation examined in this report. Lastly, it offers comparisons between Europe's and the Indo-Pacific's current policy and regulatory approaches to the global digital order in the policy areas identified. The report also identifies gaps in current cooperation, as well as convergences and divergences in policy approaches, in order to help improve European and Indo-Pacific digital cooperation.

1. Supranational Policy Approaches in the European Union

National Critical Infrastructure

How is National Critical Infrastructure defined?

The process of defining critical infrastructure at an EU-wide level began in 2004. Since then, the European Union has provided a definition for national critical infrastructures (NCIs) as well as for European Critical Infrastructures (ECIs). The first is defined as ‘asset, system or part thereof located in member states which is essential for the maintenance of vital societal functions, health, safety, security, economic or social well-being of people, and the disruption or destruction of which would have a significant impact in a member state as a result of the failure to maintain those functions’.¹ The definition of ECI adds the clause that the disruption of such infrastructure would impact at least two member states.² The first pillar of the EU’s efforts in ECI regulation is Council Directive 2008/114/EC on European Critical Infrastructures, which only included the energy and the transport sectors as critical infrastructures. To this day, the Commission has proposed a list of 11 critical sectors; member states are required to identify critical entities for each sector by 2026.³

Which part of government is responsible for NCI policy and protection?

The approach adopted by the EU for the regulation and protection of NCI is one that merges the efforts of EU-designated authorities, member states and the private sector. The Commission established the European Programme for Critical Infrastructure Protection (EPCIP) in 2005.⁴ Today, this authority has been coupled with the Critical Infrastructure Warning Information Network and the European Reference Network for Critical Infrastructure Protection (ERNICIP).⁵ Member states and private owners or operators are considered to be the primary actors and bear ultimate responsibility for protecting ECIs. Cooperation between national authorities and the private sectors is therefore

recommended to enhance the resilience of critical infrastructures.⁶ Member states are also required to cooperate through bilateral schemes to ensure the protection of transboundary critical infrastructures.

Do domestic debates about NCI lean more towards prosperity or security?

Across the level of the EU Community, the definition of critical infrastructures has been intertwined with security concerns from the outset. The EPCIP was initially established to enhance the resilience of critical infrastructures against terrorist threats. Today, the spectrum of potential hazards has expanded to include human-made threats, technological threats and natural disasters, and debate remains heavily centred around security priorities, with an emphasis on the protection of the public.⁷

Heightened concern over dependencies on foreign sources, from non-liberal states in particular, and potential supply-chain points of failure also influenced the debate upon protecting critical infrastructure at the EU and at the member-state level. For example, with regards to European 5G national networks, the EU published ‘The EU Toolbox for 5G Security’.⁸ Though the EU’s approach does not focus on any one country, the purchase of and investment in European port infrastructure by Chinese state-owned enterprises (SOEs), Huawei’s rollout of 5G network technology, Chinese private-sector acquisition of European businesses in key strategic industries (such as robotics) and dependence on Russia for energy supplies heightened European concerns about potential state interference in European critical infrastructure.⁹

Chinese investment in the EU’s digital infrastructure and technology sectors

As shown in the IISS China Connects database, Chinese SOEs and private-sector companies are heavily invested in EU member states’ critical digital infrastructure and strategic technology industries. From

2001–14, Chinese companies undertook 154 digital and technology-related projects and investments in Europe, ranging from national telecommunications-network infrastructure, to data centres, to cooperation in academic programmes. Following China's announcement of its Digital Silk Road initiative, between 2015 and March 2023 this number rose to 440 new projects and investments. However, a closer look shows that new investments and projects by Chinese technology companies in Europe have been declining since 2019. Whereas in 2019, activity peaked with 124 new projects and investments, in 2022 only 19 were recorded in the IISS China Connects database. This decline in activity is partly attributable to the impacts of the COVID-19 pandemic on global trade and investment. However, the pandemic also heightened European governments' criticism of Chinese foreign policy and concerns over Europe's over-reliance on Chinese technological supply chains.¹⁰ Since then, the EU has announced a policy of de-risking from China.¹¹

National AI Strategies

Do countries have national AI strategies?

EU member states (in addition to Norway and Switzerland) signed the Declaration of Cooperation on Artificial Intelligence in 2018, with the EU adopting the Coordinated Plan on Artificial Intelligence in the same year and then reviewing it in 2021.¹² Although the strategy emphasised the need to strengthen cooperation on AI at an EU-wide level, member states were still recommended to develop their national AI strategies. Today, the EU is proposing a new AI-regulations package, including an updated version of the Coordinated Plan and, most importantly, the first-ever legal framework for AI – the AI Act – which is expected to be enacted by the end of 2023. The proposed regulatory system aims to set requirements and defining obligations for the application of AI, listing AI categories following a risk-based approach.¹³

What are the main ambitions behind national AI strategy?

With this newly proposed package, the EU aims to be at the forefront of AI regulation in order to establish a 'technology-neutral, uniform definition for AI that could

be applied to future AI systems'.¹⁴ The regulatory framework prioritises the safety and fundamental rights of people and businesses, while enhancing cooperation, innovation and investments across the EU. The goal is to ensure AI systems are 'safe, transparent, traceable, non-discriminatory and environmentally friendly'.¹⁵ Hence, with this regulatory package, the EU aims to safeguard key principles like inclusivity (extended to area of growth), sustainability and accountability, as well as a human-centred approach in the application of AI.¹⁶

Which part of government is responsible?

The Commission is responsible for the legislation of the AI Act and the negotiation process is carried out through tri-
logue meetings, bringing together European Parliament representatives, the Council and the Commission.¹⁷ The AI Act is conceived as a horizontal 'legislative instrument applicable to all AI systems placed on the market or used in the Union', and envisions national authorities enacting it. According to the proposed legislation, a new body should be established – the EU AI Office – in order to support and harmonise the application of the AI Act and coordinate cross-border investigations.¹⁸

Who are the main stakeholders in developing and managing the strategy?

The EU promotes a whole-of-society approach along the legislative process, as well as for impact assessment of AI. The EU Parliament recommends a multistakeholder governance approach. Stakeholders include the EU AI Office, European standardisation organisations and bodies and expert groups established under relevant sectorial EU law, as well as partners in industry, small and medium-sized enterprises, start-ups, civil society and the research sector.¹⁹ According to the AI Act, this approach should enable cooperation beyond European borders, promoting a model for global cooperation on standardisation in the field of AI, which remains consistent with EU values.²⁰

Does the government seek partnership with other countries?

The EU approach to AI regulation and implementation has consistently stressed the need for cooperation both between member states and beyond. For example,

the EU is a member of the Global Partnership on AI (GPAI) and the European Council has established the Committee on Artificial Intelligence, which brings together member states, the private sector, civil society and regional and international organisations, such as the Organisation for Economic Co-operation and Development (OECD) and the Organization for Security and Co-operation in Europe, as well as non-EU countries as observers (such as Japan and the US).²¹ The EU has also engaged in bilateral partnerships with international organisations, such as the United Nations Educational, Scientific and Cultural Organization's initiative to support low-income countries develop their AI strategies.²² International cooperation has also been improved in the research sector, such as through the EU-US Administrative Arrangement, which was signed to enhance research on AI that addresses global challenges such as climate change, healthcare and natural disasters, among others.²³

What are the main challenges to execution of the strategy?

Providing legal framework in such an innovative setting is challenging for the EU. Besides this overarching issue, which itself is nested within the oft-changing field of technological innovation, conceiving a functioning enforcement structure is the main challenge to the current AI regulatory package. The AI Act sets the ground for an ecosystem of independent AI assessment. Individuals and private organisations can submit complaints about AI applications to the responsible authorities. However, there is still a lack of clarity regarding the mechanisms that will integrate the efforts of independent assessments and member states' authorities, with the end result of merging them into a risk-based regulatory framework at the EU level.²⁴

The Protection of National Innovation Ecosystems

Are export-control regulations in place?

In the EU, export-control regulations have been in place since the late 1990s and have been continuously strengthened in order to adhere to changing political and legal landscapes. As such, the EU developed a

strategy against the proliferation of weapons of mass destruction (WMD) in December 2003 and the United Nations Security Council (UNSC) adopted Resolution 1540 in 2004, which sought to prevent WMD proliferation to non-state actors.²⁵ The first complete EU regulation on export controls, Regulation (EC) No 428/2009, was adopted in 2009 in adherence to the 2004 UN standards.²⁶ Since then, this regulation has been amended, the latest version being Regulation (EU) 2021/821 of the European Parliament and of the Council, dating back to May 2021, which not only takes into account the EU and its member states' international obligations, including UNSC Resolution 1540, the Nuclear Non-Proliferation Treaty, the Chemical Weapons Convention and the Biological Weapons Convention, but also commitments agreed via multilateral export-control regimes, such as the Australia Group, the Wassenaar Arrangement, the Nuclear Suppliers Group and the Missile Technology Control Regime.²⁷ The EU's export-control regulations were further centralised on 20 October 2023, with the publication of the first compilation of EU member states' national export-control lists.²⁸ This publication enhances coordination of actions between member states. Furthermore, export restrictions (sanctions) can apply to dual-use exports and sensitive technology, such as the restrictive measures imposed on Russia in light of its actions in Ukraine since February 2022.²⁹ Lastly, some member states have also agreed to US-led export restrictions against China on core technology components, such as AI-related semiconductors.³⁰

Who manages export-control regulations?

Export-control regulations in the EU remain nationally enacted. The Commission, in close consultation with member states and stakeholders, develops 'guidelines and/or recommendations for best practices to support practical application of controls'.³¹ Member states establishing lists informed by these Commission guidelines, in turn, 'should inform the Commission and other member states of such lists [as well as of] all decisions to refuse an authorisation for an export for which an authorisation is required on the basis of a national control list'.³² Hence, member states may allow the export of dual-use items, as long as the export destination and object are consistent with the EU's General Export Authorisations.³³

Competent authorities may also provide global and individual licences to one exporter that may cover exports of one of multiple items to multiple countries or end users, or to one consignee in a third country, respectively.³⁴

What is considered in export-control regulations?

Via Regulation (EU) 2021/821, the EU's export-control regime includes a list of dual-use items that could be used in connection with a WMD programme or for human-rights violations. Individual EU member states may 'introduce additional controls on non-listed dual-use items because of public security of human rights considerations'.³⁵ Since the publication of the first compilation of member states' national export-control lists, this list also includes items such as machines that produce semiconductors (the Dutch control list), quantum computing and additive manufacturing devices (the Spanish control list).³⁶

Are investment-screening mechanisms in place?

Regulation (EU) 2019/452 established a framework for the investment screening of foreign direct investment (FDI) within the EU. However, national screening systems are not harmonised across EU member states.³⁷ The Commission plans to present a report to the European Parliament and to the European Council by the end of 2023 with an evaluation of the functioning and effectiveness of this regulation.³⁸

Who manages export-screening mechanisms?

Due to these national screening-system practices not having been harmonised across the EU, member states retain the competency to maintain, amend or adopt FDI-screening mechanisms, as long as they are transparent, protect sensitive information and do not discriminate between non-EU countries.³⁹ Information on new FDI-screening mechanisms must be shared with the European Commission annually, as well as within 30 days of application. Regulation (EU) 2019/452 lists cooperation procedures between the member states and the European Commission and gives the Commission the option to issue opinion – and member states, the ability to issue comment – on these investments.⁴⁰

Which technologies are considered in investment-screening regulations?

Investment-screening regulations in the EU are based nationally. As per Regulation (EU) 2019/452, the EU Commission publishes an up-to-date list of national screening mechanisms of EU Member States and details what each national mechanism applies to. The latest version of this report has been updated as of 13 October 2023.⁴¹ Items of critical importance in investment screening include critical infrastructure, critical technologies, supply of critical inputs, such as energy and raw materials, access to sensitive information and the ability to control information.⁴²

Does the government seek partnership with other countries?

The EU is currently engaged in a number of partnerships with other countries in the area of investment screening and critical-infrastructure protection. As such, the EU-US Trade and Technology Council (TTC) was established in 2021 to cooperate on export controls, including on information-sharing, legislative and regulatory developments, good practices, industry compliance and enforcement.⁴³ Additionally, on 26 October 2021, the Commission hosted an export-control dialogue with the six Western Balkan countries to enhance their policy alignment with the EU's *acquis Communautaire*.⁴⁴ In the FDI-screening domain, cooperation with like-minded third countries and entities is encouraged. As such, the EU supports the OECD's ongoing work on investment policies related to national security and public order.⁴⁵ Within the EU-US TTC, the virtual space *FUTURIUM* provides room for businesses, public authorities, innovators, researchers, civil society and policymakers to shape the debate on investment screening.⁴⁶

Countering Disinformation in the Cyber Domain

What are the main concerns about disinformation in the cyber domain?

In the cyber domain, election interference is a leading concern, with 73% of internet users worried about online disinformation in the pre-election period for the European Parliament in 2019, according to the 477 Special Eurobarometer survey. Cyber attacks, elite

capture of former senior politicians and the advancement of polarisation in public debates are among the main concerns within the EU.⁴⁷ Loopholes in existing EU and national legislation and the lack of a common strategy to challenge disinformation further complicate the EU's response to disinformation threats.⁴⁸ However, the EU lacks a common definition or authority to determine what counts as disinformation, as it is not directly covered in the Digital Service Act or other secondary legislation.⁴⁹ Instead, fact-checking organisations, such as CORRECTIV and Facebook/Meta, engage in the evaluation of websites and advertisement in cyberspace as well as countering disinformation within the EU.⁵⁰ Lastly, there is no explicit sanctions regime within the EU that would sanction disinformation attacks.⁵¹

Who are considered the main perpetrators?

In 2022, the European Parliament's Special Committee on Foreign Interference in all Democratic Processes in the EU, including Disinformation (INGE) conducted an in-depth inquiry into malicious foreign powers' activities within European cyberspace. It concluded that 'foreign interference and information manipulation [was] overwhelmingly carried out by Russia and China'.⁵²

What resources have been dedicated to countering disinformation?

To counter disinformation, the EU's European External Action Service (EEAS) established the EUvsDisinfo flagship project within the EEAS East StratCom Task Force in 2015. The team of journalists, communications specialists and experts on Russia attempts to 'forecast, address, and respond to the Russian Federation's ongoing disinformation campaigns affecting the EU, its member states, and countries in the shared neighbourhood'.⁵³ Legislative frameworks and communications on

disinformation were passed in the following years. This includes the April 2016 Joint Framework on countering hybrid threats, the September 2018 Communication on securing free and fair European elections, the September 2018 Code of Practice on Disinformation, and the December 2018 Action Plan against Disinformation. The 2018 Action Plan was adopted by the EEAS, which prioritised improved detection, coordinated response, private-sector mobilisation to tackle disinformation, raising awareness and empowering citizens. It also included a Rapid Alert System to combat disinformation, which was launched in March 2019. The following year, the EU passed the Spring 2019 Communication on Tackling Online Disinformation: a European Approach.⁵⁴ Additionally, the EU introduced an EU-wide ban on Russian propaganda outlets, such as Sputnik TV and RT (Russia Today), in March 2022, in reaction to disinformation on the Russian war of aggression in Ukraine.⁵⁵

Does the government seek partnership with other countries?

The EU cooperates with a host of governments on tackling disinformation. There is strong cooperation with Taiwan, given the latter's experience with Chinese disinformation. Additionally, the Council of Europe adopted the Budapest Convention on Cybercrime, allowing for sharing of best practices and creating relationships for cooperation on combatting cyber crime.⁵⁶ It comprises 68 countries, including EU member states, countries of the EU's Partnership for the Mediterranean and Eastern Partnership, as well as Indo-Pacific states, such as Australia, Japan, the Philippines and Sri Lanka, with further signatories and countries invited to accede, including Fiji, Kiribati, South Korea, New Zealand, Timor-Leste and Vanuatu.⁵⁷

2. National Policy Approaches in the Indo-Pacific

National Critical Infrastructure in the Indo-Pacific

How is National Critical Infrastructure defined?

Northeast Asia

In Northeast Asia, Japan defines critical infrastructure (CI) as ‘the backbone of people’s living and economic activities formed by businesses providing services that are extremely difficult to be substituted; If the function of the services is suspended, deteriorates or becomes unavailable, it could have a significant impact on the people’s living and economic activities’.⁵⁸ The 14 CI sectors are information and communication services, financial services, aviation services, airport services, railway services, electric-power supply services, gas-supply services, government and administrative services (including local government), medical services, water services, logistics services, chemical industries, credit-card services and petroleum industries. The Republic of Korea (ROK) defines Critical Information Infrastructure (CII) as ‘industrial control systems or information systems related to national security, administration, defence, public safety, finance, communications, transport, energy and so on’ in the Act on the Protection of Information and Communications Infrastructure.⁵⁹ Taiwan, as of yet, does not have national legislation that defines critical infrastructure, and a recent conference of Taiwanese legal and technology experts urged the government to create legal definitions for these technologies, pass legislation to protect them and promote greater cooperation with the public and private sector.⁶⁰ Broadly speaking, the Executive Yuan’s Guidance on National Critical Infrastructure Security Defense divides National Critical Infrastructure (NCI) into eight fields: energy, water resources, telecommunications, transportation, banking and finance, emergency aid and hospitals, central and local governments and high-tech parks.⁶¹ In September 2023, Taiwan’s national Cybersecurity Management

Law legislated that companies that provide critical infrastructure and are government-owned or government-funded must install a cyber-security chief.⁶²

Southeast Asia

Among the Southeast Asian states, only the Philippines and Indonesia feature a distinct definition for NCI in their policy documents. The Indonesian definition is based on threat, naming ‘Critical National Infrastructures [as] assets, services, objects in the form of physical or logical that involving the livelihood of many people, national interests and/or revenue of country that are strategic, in case of threats and attacks cause more loss of lives, destabilizing political, social, cultural and national economy as well as the sovereignty of the nation’.⁶³ The Philippines’ definition includes a threat, a growth and a development angle: ‘Critical Infrastructures are...key infrastructures not only for economic growth and development but also as societal instruments for the conduct of everyday activities. Hence, any threat posed against these infrastructures would be threats to national security.’⁶⁴ As such, relevant sectors for protection range from government, transportation (land, sea and air), energy, water, health, emergency services and disaster response to banking and finance, telecommunications, media and business-process outsourcing.⁶⁵ However, most Southeast Asian countries do not have any policy documents on NCI, including Laos, Myanmar and Vietnam. Brunei, Malaysia, Singapore and Thailand have definitions for National Critical Information Infrastructure (NCII) and Cambodia is developing a cyber crime law that will foreseeably mention NCII.⁶⁶

South Asia

Across the region, definitions of NCI are blurred and often linked to the identification of specific critical sectors or to the definition of NCII. The Nepalese government provides a clear definition under its Cybersecurity Policy, identifying NCI as the essential services that

underpin society and serve as the backbone of Nepal's economy, security and health.⁶⁷ India defines critical sectors as those 'whose incapacity or destruction will have a debilitating impact on national security, economy, public health or safety'.⁶⁸ Bangladesh, India and Pakistan have identified the sectors considered crucial to economic and societal security in their respective cyber-security strategies.⁶⁹ The three countries define the six sectors that most countries point to as critical: information and communications technology (ICT), energy, finance, health, transport and water.⁷⁰

While Bangladesh's list is limited to these sectors (with the addition of monuments and buildings as NCI), India's and Pakistan's list goes further. The list of NCI released by Indian authorities in 2015 added new sectors to the previous version, such as defence, space, law enforcement, security and intelligence, sensitive government organisations and critical manufacturing. For the rest of the countries in the region, development in this sphere is in progress. According to the Information and Cyber Security Strategy of Sri Lanka 2018–2023, a Critical Infrastructure Protection Policy currently being developed to safeguard and protect national security. Similarly, Bhutan's first National Cybersecurity Strategy, which would identify CII, is undergoing the cabinet's approval after the first draft was released in 2020.⁷¹

Oceania

In Oceania, both Australia and New Zealand have clear definitions for NCI. In its 2023 Critical Infrastructure Resilience Strategy, Australia defines critical infrastructure as 'those physical facilities, supply chains, information technologies and communication networks, which if destroyed, degraded or rendered unavailable for an extended period, would significantly impact the social or economic wellbeing of the nation, or affect Australia's ability to conduct national defence and ensure national security'.⁷² In New Zealand, the Cyber Security Strategy defines critical infrastructure as 'physical and digital assets, services, and supply chains, the disruption (loss, compromise) of which would severely impact the maintenance of national security, public safety, fundamental rights, and wellbeing of all New Zealanders'.⁷³ In the meantime, its Infrastructure Strategy calls for the need for the

definition to be 'developed to align with international best practice'.⁷⁴

In Kiribati, NCI is linked with cyber.⁷⁵ In the other countries, when NCI is debated, it is mostly applied to the security of 'human-made physical and organisational structures...disruption [of which] can seriously and negatively affect [the countries'] ability to function as a successful society', including infrastructure as diverse as schools, homes, medical facilities, roads, ports, coastal protection, power, water and modern telecommunications services, maritime connectivity, ports, airports, energy, communication, utilities, sports facilities and environmental-management infrastructure. Only Guam – an organised, unincorporated US territory – and French Polynesia and New Caledonia – overseas collectivities of France – focus on physical and virtual assets.⁷⁶

Which part of government is responsible for NCI policy and protection?

Northeast Asia

In Japan, the Cybersecurity Strategic Headquarters under the cabinet is responsible for NCI policy. The National Center of Incident Readiness and Strategy for Cybersecurity (NISC), the secretariat of the Cybersecurity Strategic Headquarters, oversees coordinating cybersecurity policy and formulating key documents, such as the Cybersecurity Strategy and the Cybersecurity Policy for Critical Infrastructure Protection.⁷⁷ The NISC was established in 2015 and was formerly called the National Information Security Center, which was founded in 2005. At the working level, NISC and respective ministries for each CI cooperate for CI protection. The ministries in charge of CI include the Financial Services Agency; Ministry of Internal Affairs and Communications; Ministry of Health, Labor and Welfare; Ministry of Economy, Trade and Industry; and Ministry of Land, Infrastructure, Transport and Tourism. In the ROK, the Critical Information Infrastructure Protection Committee under the prime minister's office is responsible for NCI policy. The implementation is split between two organisations. The National Intelligence Service oversees the public sector, and the Ministry of Science and ICT oversees the private sector.⁷⁸ Under Taiwan's

Cybersecurity Management Law, the Executive Yuan can stipulate guidelines that restrict ICT product usage that might endanger national cyber security.⁷⁹ It is also given the power to announce a list of banned brands of ICT products and services that relevant entities cannot procure or use. The Administration for Cyber Security within the Ministry of Digital Affairs manages the implementation of the Cybersecurity Law.⁸⁰ Taiwan's National Information and Communication Security Taskforce within the Executive Yuan oversees the joint national cyber-security defence mechanism and links the central government responsible entity with the relevant industry entities, as well as the national-level Information Sharing and Analysis Center, a Computer Emergency Response Team (CERT) and the Security Operation Center (SOC).⁸¹

Southeast Asia

In Cambodia, Indonesia and the Philippines, the respective departments responsible for ICT oversee NCI (including cyber in Cambodia) policy and protection.⁸² In Indonesia, no structures for strategic and tactical protection of NCI have been developed; bodies for NCI protection (ID-SIRTII, GovCert and ID-Cert) have been created only at the operational level.⁸³ For those countries that feature definitions for NCII in their respective cyber strategies, the relevant cyber-security agency is responsible for NCII policy and protection, complemented by the Ministry of Transport and Infocommunications in Brunei, the Ministry of Homeland Affairs in Singapore and the Digital Economy Promotion Agency in Thailand.

South Asia

Most South Asian countries have set up departments and units to strengthen the resilience and protection of their digital infrastructure. Despite the different pace in recognising and defining CII, national governments are investing in building up government mechanisms for CII protection. The Indian government established the National Critical Information Infrastructure Protection Centre in 2014, which released the consequent Guidelines for the Protection of National Critical Information Infrastructure.⁸⁴ In the same year, Bangladesh set up an ICT division within the Ministry of Posts, Telecommunications and

Information Technology. More recently, Pakistan has constituted the Cyber Governance Policy Committee, as part of the Ministry of Information Technology and Telecommunication, which released the National Cyber Security Policy 2021.⁸⁵

For other countries in the region, the process is ongoing, having designated units and working groups within their governments but not yet having approved national strategies. Bhutan is combining the efforts of the Bhutan Computer Incident Response Team (BtCIRT) and the Ministry of Information and Communications' Department of IT and Telecom to define CII and develop national strategies. Nepal created a draft of the National Cybersecurity Policy released in 2016, highlighting the government's commitment to strengthening NCI protection. Sri Lanka put in place the Digital Infrastructure Protection Agency, which, to this day, is still more focused on increasing connectivity than implementing regulations.⁸⁶ The Maldivian government has not yet dedicated a working unit to CII protection.

Oceania

In Oceanian countries, no single entity is generally responsible for NCI policy and protection. In Australia, the Minister for Home Affairs has regulatory and authorisation responsibilities, granted by amendments to the Security of Critical Infrastructure Act 2018, which are supported by the Cyber and Infrastructure Security Centre.⁸⁷ In New Zealand, the National Security Group of the Department of the Prime Minister and Cabinet published the Cyber Security Strategy 2019.⁸⁸ The National Cyber Security Centre and the Government Communications Security Bureau (GCSB) share responsibility for implementing the 2019 strategy.⁸⁹ The Infrastructure Commission, which is an Autonomous Crown Entity, is in charge of the Infrastructure Strategy.⁹⁰

In the Pacific Islands, various ministries are responsible for NCI policy and protection. Palau and Vanuatu focus on the hard security of infrastructure; in the former, periodical condition assessments are conducted by the Bureau of Public Utilities, while in the latter, protection is provided by the National Security Forces. The Ministry of Home Affairs assures NCI protection in Fiji, while in Kiribati the CERT contains the different policy understandings and priorities for all four examples.⁹¹

Do domestic debates about NCI lean more towards prosperity or security?

Northeast Asia

In Northeast Asia, Japan seems to have put more emphasis on prosperity than the ROK. In the latter, the government can implement NCI policy without major pushbacks from the private sector as the state operates most NCIs centrally.⁹² On the other hand, in Japan the private sector is more involved in NCIs. The domestic debate on how it could balance prosperity and security was at its most heated when the government passed the Economic Security Promotion Act in 2022, which included the security of core infrastructure. During the Diet session on the passage of this act, economic prosperity and business activities were two of the main concerns. Due to Taiwan's extensive experience of cyber-security attacks on its NCI, domestic debate there leans heavily towards security considerations and Taiwan increasingly requires private-sector companies to improve their security practices.⁹³

Southeast Asia

Discourses in Southeast Asian countries on NCI seem to be split between those countries seeing their potential for prosperity, and those that approach NCI through a security prism and focus on the risks attached to a limited protection of NCI. The first group of countries includes Indonesia, Laos, Myanmar and Vietnam. In Myanmar, infrastructural development is seen as a great enabler for trade, mobility, productivity and, subsequently, economic growth.⁹⁴ Massive scale-ups of the electrical grid under the National Electrification Plan, as well as road-network developments and other infrastructural investments, are to be undertaken under the Myanmar Sustainable Development Plan.⁹⁵ Nonetheless, the military coup on 1 February 2021, coupled with the COVID-19 pandemic and ongoing internal conflict, has led to a deteriorated economic situation, with the World Bank asserting that 'nearly a decade of progress on poverty reduction has been undone'.⁹⁶ Political volatility and uncertainty continue to limit Myanmar's development of critical infrastructure. Conflict, electricity outages, trade and foreign-exchange restrictions and frequent changes to rules and regulations also continue to disrupt

business operations.⁹⁷ In Indonesia, the government has undertaken dialogues with the private sector and has reformed its regulations to create a more conducive environment for private-sector participation in infrastructural development, which is seen as a key priority for the government and highlighted by a 51% increase in government infrastructure spending in 2015.⁹⁸

The second group of countries includes Brunei, Malaysia and Singapore. Infrastructure and technology therewith are set on par with 'major power dynamic, regional and global instability, terrorism and violent extremism [...] and natural disasters'.⁹⁹ In the Philippines and Cambodia, the discourse seems to be split evenly. As part of its counter-terrorism strategy, in 2017 Singapore passed the Infrastructure Protection Act to protect NCI, complimented by the 2021 Strategy on Secure Critical Infrastructure, both highlighting the urgency of protection against possible threats.¹⁰⁰

South Asia

In many South Asian countries, the debate about NCI revolves around the potential to increase connectivity in the country and to address development challenges. In the Maldives, for example, national infrastructures are still very fragmented, given the nature of the country's territory. As such, the concern about security does not feature in the domestic debate. For many South Asian governments, the priority is the protection of NCI from natural disasters, rather than the exposure to security threats. On the other hand, India and Nepal integrate security objectives with the development of their NCI.

Oceania

In Oceania, both Australia and New Zealand seek to balance security and prosperity, with Australia working collaboratively with stakeholders, including critical-infrastructure owners and operators.¹⁰¹ The Cyber Security Strategy 2019 states that 'strong cyber security practices result in businesses remaining productive, profitable and transparent to customers and shareholders'.¹⁰²

In the Pacific Islands, domestic debates about NCI fall into four categories. Firstly, there are those states that focus on security and third-entity threats to their NCI, such as Fiji, Guam (through its US connection),

Vanuatu, and to some extent, Kiribati and Tonga. Secondly, states such as French Polynesia, Nauru, Palau and Tuvalu view their infrastructure security as facing harm from climate change and national disaster. Thirdly, debates in Marshall Islands, Micronesia, Papua New Guinea, Solomon Islands and Timor-Leste and, to some extent, Kiribati, Tonga and Tuvalu, revolve mostly around the positive impacts of infrastructural development for their economic development and human prosperity. Lastly, Cook Islands recognises both the challenges and advantages of technological developments. As such, its Cyber Security Review states that ‘if the government wants to continue harnessing the development potentials of digitization, it must ensure citizens’ wellbeing, national emergency responses and critical infrastructure’.¹⁰³

What is the exposure to Chinese-technology investments according to IISS China Connects?

Northeast Asia

Northeast Asian states, even with attentive governments in place, remain highly exposed to potential threats from Chinese technologies. Japan is exposed to Chinese 5G networks, telecommunications, e-commerce, fintech (financial technology), data centres and fibre-optics networks. In Japan, the only cancelled project related to 5G networks was Huawei and NTT Docomo’s large-scale 5G field trial. The ROK has allowed Chinese 5G technology in its national network rollout. The ROK has, however, taken the approach of segmenting its national network from any network used by the United States Forces Korea. No 5G project in the ROK has been cancelled. Taiwan has long been wary of Chinese-origin ICT technology and has not integrated this into its ICT networks. However, some Taiwanese energy installations of national importance do use Chinese surveillance technology to secure their sites, and civilians use Chinese technology. Nevertheless, the greatest threat to Taiwan’s NCI is its proximity to China, and the risk of physical and cyber-security interference regardless of the origin of Taiwan’s digital infrastructure and technology.

Southeast Asia

All Association of Southeast Asian Nations (ASEAN) countries are exposed to Chinese telecommunications and 5G networks, except for Laos and Vietnam in the case of the latter. Indonesia, Myanmar, Thailand and Vietnam also cooperate with China on fibre-optics cables. No projects in any of the countries have been halted or cancelled.

South Asia

In a region that India has traditionally considered to be its strategic backyard, Beijing’s technological outreach in South Asia has been modest when compared to other regions. China’s technology investments have increased overall over the past decade but have seen a recalibration in recent years. Pakistan, being the recipient of vast Chinese investments in its digital sector, represents an exception to the block of countries analysed. Nevertheless, some common trends can be observed among the countries in the region. South Asian countries have been exposed to Chinese investments in the sector of fibre-optics network technology, with three projects in Pakistan (Peace, Africa-1 and Pak-China Cable), the Maldives Sri Lanka Cable and the cross-border internet cable with Nepal. Smart-city projects have been carried out in several regional countries, for example, in Sri Lanka’s logistical hub in Colombo Port.¹⁰⁴ Further initiatives include a safe-city project in Lahore, Pakistan, and several data centres across the region.

In all South Asian countries – except for Bhutan – Chinese companies have been involved in the delivery of 3G, 4G and 5G networks over the past 15 years. Despite Huawei’s predominance in most of these countries, in India, telecommunications company ZTE was a more significant investor in the sector, although both companies’ presence in India has shrunk dramatically since 2020. Overall, the Maldives, Pakistan and Sri Lanka have been more receptive to Chinese technological investments, but Bangladesh less so. On the other hand, the Bhutanese, Indian and Nepalese markets appear to be less exposed to Chinese technological outreach.

Oceania

In Oceania, Australia is highly exposed to Chinese technologies and investments. Such technologies in Australia include security-information systems, telecommunications,

data centres, e-commerce, fintech, 5G networks, power generation, and fibre-optics network technology. Moreover, China has acquired several ports and invested in raw minerals in Australia. The only project that was cancelled due to security concerns was the majority acquisition of Ausgrid, which is categorised as energy-transmission infrastructure. New Zealand is less exposed to Chinese technologies but the exposure still includes telecommunications, fintech and e-commerce. New Zealand cancelled Huawei's 5G trial with telecommunications company Spark.

Only a small number of Pacific Islands states are exposed to Chinese technology investments, such as Vanuatu with an e-governance collaboration, Solomon Islands on telecommunications and Papua New Guinea on 5G, telecommunications, e-governance and fibre optics. No projects in any of the countries have been halted or cancelled.

National AI Strategies

Do the countries in question have national AI strategies in place?

Northeast Asia

In Northeast Asia, both Japan and the ROK have national AI strategies. Japan published its first AI Strategy in 2019 and has updated it since then.¹⁰⁵ The latest strategy is the AI Strategy 2022, published in April 2022.¹⁰⁶ The ROK published the National Strategy for Artificial Intelligence in 2019.¹⁰⁷ In June 2023, Taiwan's Executive Yuan published its second national AI plan, having published its first in 2018.¹⁰⁸

Southeast Asia

Indonesia, Singapore, Thailand and Vietnam have national AI strategies in place.¹⁰⁹ Malaysia and the Philippines each launched national AI roadmaps in 2021 and Cambodia created a national AI assessment in 2023 on which it plans to build its AI strategy.¹¹⁰ Conversely, Brunei, Laos and Myanmar do not have any national AI strategies in place.

South Asia

Among South Asian countries, India is the only one to have approved a national AI strategy, while Pakistan and Bangladesh have proposed drafts. India published its

National Strategy for Artificial Intelligence in 2018 after several rounds of discussion.¹¹¹ Bangladesh has released its National Strategy for Artificial Intelligence for 2019–24.¹¹² In 2022, the Pakistani Ministry of Information and Telecommunication published the draft of its National Artificial Intelligence Policy, which was met with criticism due to the lack of a whole-of-society approach along the drafting process.¹¹³ In Bhutan and Nepal, there is a domestic debate on the need for their respective governments to develop and implement national AI strategies. Sri Lanka and the Maldives have digital strategies but lack a national approach to AI.

Oceania

In Oceania, Australia already has an AI strategy and New Zealand has laid groundwork for its own. Australia has the AI Action Plan, which is a key component of its Digital Economy Strategy.¹¹⁴ Although still not in a complete form, New Zealand suggests six cornerstones for a future strategy: 'Uniquely New Zealand', 'Human centred and trusted AI', 'Investment in AI economy', 'Preparing the workforce' and 'Our place in the world', with all of the above supported by 'enabling foundations'.¹¹⁵

Among the Pacific Islands states, French Polynesia, New Caledonia and Guam have access to AI strategies thanks to their respective connections to France and the US; however, these strategies are not specifically dedicated to these collectivities or territories. Kiribati has highlighted a need for AI development in its 2019 National ICT Policy; Timor-Leste has a Strategic Plan for Digital Development, and Solomon Islands has a National E-commerce Strategy.¹¹⁶

What are the main ambitions behind national AI strategies?

Northeast Asia

Japan, the ROK and Taiwan have somewhat similar AI objectives, focused on improving industrial competitiveness and harnessing the positive aspects of AI for economic growth and addressing demographic changes. However, Japan also seeks to address natural disasters through AI while Taiwan seeks to use it to combat climate change. Japan's AI Strategy 2022 lays out

its five strategic objectives: (1) to deal with imminent crises, such as pandemics and natural disasters; (2) to develop and attract human resources for the AI era; (3) to improve industrial competitiveness; (4) to establish technological systems; and (5) international cooperation in the AI field.¹¹⁷ The ROK's ambitions are 'to achieve digital competitiveness, create huge economic effect of AI, and improve quality of life for people by 2030'.¹¹⁸ Taiwan's initial four-year Taiwan AI Action Plan in 2018 sought to attract global top-tier technology companies working on AI, like Google and Microsoft, to Taiwan. Taiwan's second National AI Plan aims to increase the value of Taiwan's AI industry to over USD8.16 billion, focusing on developing talent and industry, improving work environments and increasing Taiwan's technological influence and participation in overseas markets.¹¹⁹ In general, the government is currently examining how AI could impact Taiwan's society, resolve labour shortages, address issues such as a rapidly ageing society and achieve net-zero greenhouse-gas emission goals.¹²⁰

Southeast Asia

All six Southeast Asian countries' AI strategies are development- and prosperity-related with ambitions of transforming their respective infrastructure, workforce and economic models. In this regard, AI shall assist Vietnam's Fourth Industrial Revolution, or lead to 'inclusive sustainable industrial development' in the case of the Philippines.¹²¹ Additionally, all countries focus on research and development, particularly on AI talent.¹²² This focus on prosperity through AI is not surprising. Recent studies, including the 2020 EDBI and Kearney study, assess that by 2023, AI technologies could unlock USD1 trillion to Southeast Asian GDPs.¹²³ Indonesia, the Philippines and Singapore further focus on regulatory developments, on a global scale and in partnership with third countries. Only Singapore's AI strategy clearly outlines the need for the country to adapt to new and disruptive technologies.¹²⁴ As such, Singapore's AI vision for 2030 is best outlined via the following statement: 'Domestically, our private and public sectors will use AI decisively to generate economic gains and improve lives. Internationally, Singapore will be recognised as a global hub in innovating, piloting, test-bedding, deploying and scaling AI solutions for impact'.¹²⁵

South Asia

Among the three countries in South Asia that have approved or proposed AI strategies – Bangladesh, India and Pakistan – different stands on digitalisation and AI adoption can be observed. One difference emerges from the slogans that India and Bangladesh have circulated to promote their AI strategies, respectively #aiforall and 'AI for Innovative Bangladesh'.¹²⁶ While for India the emphasis is on society and connectivity, for Bangladesh the goal is innovation and development. These concepts are cemented in the respective AI strategies. From the text of the Indian AI strategy, it appears that the government aims to leverage AI not only to foster economic growth, but also to increase social inclusion and address a number of issues related to AI implementation, such as ethics and privacy.¹²⁷

On the other hand, in recent years Bangladesh has made striking developments towards digitalisation and promotes AI as an 'accelerator' of this process, one which will transform the country into a technologically advanced state.¹²⁸ The Pakistani AI draft strategy seems to encompass both stands in its strategic objectives, stressing Pakistani society's need to evolve efficiently in the age of the Fourth Industrial Revolution.¹²⁹ Technological competitiveness boosted by AI is presented throughout the document as intertwined with the livelihoods of Pakistani citizens.

To some degree, the list of sectors prioritised by governments in their national AI policies reflects the national approach to AI strategy. Indian policy has the most limited list of areas of intervention and is focused on sectors with greater societal impact, such as education, healthcare, agriculture and food security, mobility and – a unique case – smart cities.¹³⁰ Pakistan's and Bangladesh's lists of drafts add fields closer to their economic-development goals, such as the finance sector, trade, commerce and manufacturing.¹³¹ Among South Asian countries, Pakistan is the only one to include the defence sector, echoing other countries beyond the region like China, France and the US.

Oceania

In Oceania, increasing productivity and problem-solving seem to be the biggest objectives. Australia's strategic goal is to establish itself as 'a global leader in developing and

adopting trusted, secure and responsible AI'.¹³² Australia aims to drive productivity and prosperity, create jobs, solve current real-world problems and grow new businesses and sectors by developing emerging technologies, including AI.¹³³ New Zealand also has objectives focused on increasing productivity and developing new products and markets. The country also aims to solve cross-border problems through international collaboration.¹³⁴

For those Pacific Islands states that have digital strategies (Kiribati, Solomon Islands, Timor-Leste), the economic potential of digital technologies is the main driver for development in this domain.

Which part of government is responsible for AI strategy design and implementation?

Northeast Asia

In Japan, the Cabinet Office is responsible for AI strategy design, with various ministries in charge of implementation. These include the Ministry of Education, Culture, Sports, Science and Technology; the Ministry of Economy, Trade and Industry; the Ministry of Health, Labour and Welfare; the Ministry of Land, Infrastructure, Transport and Tourism; the Ministry of Internal Affairs and Communications; and the Ministry of the Environment.¹³⁵ Similarly, in the ROK, a pan-government committee is responsible for AI strategy, and the implementation is divided into respective ministries.¹³⁶ The key difference between the two countries' approaches is that the ROK's has a clear role for the Ministry of National Defense in establishing an intelligent-defence platform and establishing a defence-intelligence data centre and developing the intelligent supporting command centre, whereas in Japan, no MoD personnel are involved in AI-strategy design, etc.¹³⁷ Taiwan's Ministry of Digital Affairs is largely in charge of Taiwan's national AI strategy and is mandated to establish an AI-evaluation centre, which is intended to draft acts for AI regulation and provide a legislative basis for AI usage. Cross-agency meetings are held to consider AI-generated context and AI-related ethics.¹³⁸

Southeast Asia

Among Southeast Asian countries, Singapore is the only one to have a dedicated 'National AI Office' under the Smart Nation and Digital Government Office.¹³⁹

In Indonesia, the Philippines and Thailand, ministries related to technology and/or innovation have designed the AI strategies. In Vietnam, most ministries seem to have been involved in design and implementation.

South Asia

Looking at the three countries that have pioneered AI strategies in the South Asian region, India is the only case where a specific committee was created within the government to develop an AI programme. In fact, the Ministry of Electronics & Information Technology allocated USD54 million to create the National Institution for Transforming India (NITI Aayog), responsible for the research and development of new and emerging technologies in India.¹⁴⁰ Mandated by the government in 2019 to develop an AI strategy, NITI Aayog delivered it after collaborating with leading experts in the sector and stakeholders. In Bangladesh, the government has appointed the Information and Communication Technology Division to draft a national AI policy.¹⁴¹ In Pakistan, the draft of national AI strategy was released under the Ministry of Information Technology & Telecommunication. In the draft it is stated that the ministry aims to set up a national AI fund.¹⁴²

Oceania

In Australia, while the Department of Industry, Science and Resources is leading the coordination of AI policies, other departments are also involved in the process. In New Zealand, the Ministry of Business, Innovation and Employment is leading the process with The AI Forum, a purpose-driven NGO.¹⁴³

Though Kiribati does not have an AI strategy, it has established the position of Chief Information Security Officer, following its 2019 Cyber Strategy.¹⁴⁴

Who are the main stakeholders in developing and managing the strategy?

Northeast Asia

In Northeast Asia, both Japan and the ROK emphasise the importance of engaging with various stakeholders. Specifically, both countries focus on the private sector as the primary actor to lead innovation. In addition, academia is key in both countries' AI strategies, given the urgent need

for AI talent to be nurtured.¹⁴⁵ In Taiwan, a variety of stakeholders are consulted through specially created channels. For example, Taiwan's National Science and Technology Council has launched a Taiwan AI Center of Excellence, which serves as a platform to centralise the efforts by various government agencies to formulate the rules governing AI applications and to facilitate collaborations with international partners on AI projects.¹⁴⁶ Taiwan's government also supports incubator projects to help develop start-ups in Taiwan working on AI-technology application.¹⁴⁷

Southeast Asia

Among Southeast Asian countries, Singapore and the Philippines have a unique approach to AI that features all echelons of society.¹⁴⁸ This is a product of the expansiveness and ambition of their AI strategies, which feature not only goals around domestic prosperity, research and development and talent acquisition, but also ambitions to become AI hubs and regulatory front runners. Thailand has a national AI committee that is the driver behind the development of its AI strategy. This body was appointed in August 2022 following Thailand's acknowledgement that it was lagging behind other regional states in terms of providing a vision on how to harness the powers of AI.¹⁴⁹ Development in Vietnam is driven mainly by ministries and institutions related to the research and development of AI, as is the case in Indonesia, where the government and tech firms cooperate.¹⁵⁰

South Asia

India identifies stakeholders as research organisations, trade bodies, the tech-related private sector and venture-capital firms.¹⁵¹ The national AI strategy stresses the need for the government to strengthen ties and boost cooperation with these actors. Similarly, in Bangladesh, the stakeholders involved in the AI-strategy development are several government ministries, academia and the tech-related private sector. Bangladesh delineates a roadmap, available in its national AI policy, with specific development milestones for the years to come. Among these is a goal to expand the range of stakeholders into an international network of partnerships that cooperate with Bangladesh on AI development and application.¹⁵²

On a different note, in Pakistan's policy the definition of the stakeholders cooperating for a national approach

to AI is less clear. Throughout the document, academia and private industry are identified as stakeholders and as the key partners with which the government should engage to boost the digital ecosystem in Pakistan. The national AI Policy even includes a few cases of successful public-private cooperation, such as National Center of Artificial Intelligence (NCAI).¹⁵³

Oceania

In Oceania, both Australia and New Zealand take a whole-of-society approach. In its AI Action Plan, Australia emphasises coordination with businesses, researchers and the community. New Zealand's working vision also involves citizens, academia, start-ups and industry.¹⁵⁴

Does the government seek partnership with other countries in aligning AI strategy?

Northeast Asia

In Northeast Asia, countries are actively seeking multilateral and multilateral partnerships both within the region as well as with other countries. One of the most significant developments in the region was the Camp David Summit held in August 2023. The three attending countries – Japan, the ROK and the US – committed to trilateral cooperation in AI.¹⁵⁵ The three countries are Organisation for Economic Co-operation and Development (OECD) members, which is the key platform for analysing AI policy developments, and founding members of the Global Partnership on AI (GPAI), which is a critical body for policy implementation.¹⁵⁶ Japan led the G7 Hiroshima Summit in May 2023, which called for establishing global standards for AI and established the Hiroshima AI Process.¹⁵⁷ Japan is also part of the effort to use AI to make progress on the UN Sustainable Development Goals.¹⁵⁸ Bilaterally, Japan is also strengthening AI cooperation with partners, such as the EU, the United Kingdom and the US. US-Japan cooperation is at an advanced stage, and the two countries are discussing AI cooperation both at a high and a working level.¹⁵⁹ Japan and the EU confirmed their cooperation in AI research and governance.¹⁶⁰ Japan and the UK cooperate to establish AI principles and governance under the Digital Partnership.¹⁶¹ The ROK

is also strengthening cooperation and policy coordination with the US and the EU.¹⁶² Following disruptions to supply chains caused by the COVID-19 pandemic, Western governments have increased their collaboration on technology with Northeast Asian actors. This has largely centred around semiconductors and strategies to 'friendshore' Taiwanese manufacturing to Europe, Japan and the US. However, in some instances, European governments have agreed to deepen their cooperation on scientific research with Taiwan, including on AI.¹⁶³

Southeast Asia

Among Southeast Asian countries, Singapore seeks not only to develop its national AI, but also to be at the forefront of regulation and standard-setting in international organisations, such as the World Economic Forum, the OECD, the International Organization for Standardization and the International Electrotechnical Commission.¹⁶⁴ It cooperates on bilateral and multinational AI research, including with France (as does Vietnam). Vietnam's top three international priorities are the implementation of bilateral and multilateral scientific-research cooperation programmes and projects on AI; the exchange of experts, researchers and students; and the improvement of institutions to attract foreign direct investment (FDI) and encourage multinational high-tech corporations to build centres for AI research, development and application in Vietnam.¹⁶⁵ Indonesia has encouraged investments from Chinese, Japanese and Korean tech firms in its domestic AI landscape, while also attempting to balance an influx of Chinese and American investments.¹⁶⁶

South Asia

The Indian government has tried to promote AI regulation at both the regional and international level. With its national AI strategy, India hopes to be able to define a roadmap as a model for other emerging and developing countries. At the same time, India engages in partnerships with other like-minded countries at the international level as a founding member of GPAI. The next GPAI summit will take place in New Delhi in December.¹⁶⁷ Within the framework of the Quadrilateral Security Dialogue (Quad), India also cooperates with Australia, Japan and

the US in the domain of new technologies and AI.¹⁶⁸ The Quad aims to promote a human-centric approach to AI, in compliance with human rights and shared democratic values.¹⁶⁹ While India plays an active role at the international and multilateral tables, other countries in the region have engaged in bilateral partnerships. The Maldives, for instance, has cooperated with Singapore on an AI project for healthcare, while Pakistan looks at China's AI-strategy model, with the collaboration on the Sino-Pak Center for Artificial Intelligence.¹⁷⁰

Oceania

In Oceania, both countries seek partnerships and coordination with other countries. Australia and New Zealand are founding members of GPAI.¹⁷¹ Australia's key partners in AI are the AUKUS countries. The AUKUS Advanced Capabilities Pillar (Pillar Two) pursues US–UK–Australia trilateral cooperation in cutting-edge technologies. In May 2023, the first AI and autonomous trial was held.¹⁷² Most recently, in October 2023, Australia launched new AI cooperation with the US for research into AI solutions for societal challenges, including pandemics and droughts.¹⁷³ The private sector is also active in the US–Australia cooperation in AI, which includes Microsoft's investment in AI infrastructure in Australia.¹⁷⁴ New Zealand also showed interest in joining Pillar Two of AUKUS.¹⁷⁵

What are the main challenges to execution of the strategy?

Northeast Asia

Japan recognises the challenges in its AI Strategy 2022, such as the delay in digitalisation and use of AI (particularly in government), the lack of AI talent, the lack of trust in AI and the narrow scope of AI application.¹⁷⁶ The ROK states that the main challenges include a lack of data available to companies and individuals and a closed distribution system, a technology gap between leading countries, a potential gap between the existing legal system and new technologies, a low level of investment, a lack of AI talent, deteriorating competitiveness in traditional industries, an ageing system of government, and potential unequal benefits from the spread of AI. For Taiwan, the challenge will

be navigating political sensitivities as it deepens its cooperation with European partners on AI. This last one will particularly be true considering the United States' heightened export controls on AI-related chips to China.

Southeast Asia

In Southeast Asia, with the exception of Singapore, investments in AI solutions lag behind other Indo-Pacific regions. As such, the Philippine's per-capita investment is less than USD0.01; in Vietnam, it is USD0.03; in Indonesia, it is USD0.20; in Malaysia, USD0.23 and in Thailand it is USD0.37, compared to Singapore's USD68 per capita, or the United States' USD155 per capita.¹⁷⁷ Additionally, the Philippines' internet quality and speed are half the global average for mobile internet in 2020 (17.83 megabits per second (Mbps) vs 39.18 Mbps), and just over one-quarter of the 2020 average when it comes to fixed broadband (27.07 Mbps vs 87.84 Mbps).¹⁷⁸ Additionally, Thailand does not currently have a regulatory framework for AI use.¹⁷⁹ In Vietnam, the lack of funding for AI development, as well as the lack of a strong AI expert community, leads to a heavy reliance on FDI and the outsourcing of Vietnamese and Vietnam-based AI and tech companies.¹⁸⁰ Singapore's regulatory and investment climate for AI development far outweighs that of the other ASEAN countries. In a next step, in June 2023 the government identified the following six generative AI risks – hallucinations, privacy and confidentiality, accelerated disinformation, copyright challenges, embedded biases, and impersonation and deepfakes – and subsequently set up a foundation to develop tool-kits to mitigate these challenges in cooperation with the open-source community.¹⁸¹

South Asia

The challenges that Bangladesh, India and Pakistan face in the implementation of their respective national AI strategies are similar and can be grouped into three macro-categories. The first is the lack of an enabling data ecosystem. In Bangladesh, for example, the limit is the lack of available AI technology and the lack of the necessary infrastructures.¹⁸² The second challenge shared by the three countries is the lack of clarity over

privacy, security and ethical regulations. As a way forward, both Bangladesh and Pakistan suggest turning towards models adopted by countries that have made progress in this sphere. Their interest, however, lands on different actors: Bangladesh points to an EU General Data Protection Regulation approach, whereas Pakistan leans towards models implemented by China, Estonia and the UK.¹⁸³

Lastly, a common concern for India, Pakistan and Bangladesh when looking at the integration of AI technologies in their economic sectors is the risk of employment disruption. In countries where the manufacturing sector is a pillar of the national economy, the spread of automatised work might have a major impact on their workforce, if not accompanied with a necessary process of reskilling. Another specificity that Bangladesh and Pakistan point to as a challenge is digital literacy and the need to boost it a societal level. On the other hand, India highlights the low intensity of AI research as one of its current challenges, with a research community confined to a few academic institutions and meagre investments coming from the private sector.¹⁸⁴

Oceania

In Oceania, both Australia and New Zealand see themselves as well-positioned to lead in the AI field. Australia notes its leading position in academia and strategic fields of AI, such as computer vision, deep learning, field robotics, neural networks and machine learning. Another strength comes from the whole-of-economy settings, including a competitive, market-driven economy with free and open trade, strong digital infrastructure and an established skills pipeline.¹⁸⁵ New Zealand refers to the quality of the government, a collaborative culture, multiculturalism, good infrastructure, a high education level, an open business environment, the level of research and the ability to commercialise research.¹⁸⁶ That being said, challenges remain in areas such as forming a comprehensive AI strategy and fully collaborating with the private sector.

In most Pacific Islands states, digital infrastructure and technical expertise are lacking and their development is not yet a priority for the mostly economically less prosperous governments.

Protecting National Innovation Ecosystems

Are export controls in place?

Northeast Asia

In Northeast Asia, both Japan and the ROK have export controls in place. The Foreign Exchange and the Foreign Trade Act provides the legal framework for export controls in Japan. The ROK's relevant laws in export controls include the Foreign Trade Act, the Defense Acquisition Program Act, the Nuclear Safety Act and the Prohibition of Chemical and Biological Weapons Act.¹⁸⁷ Taiwan is not a member of the Australia Group, the Missile Technology Control Regime (MTCR), the Nuclear Suppliers Group (NSG) or the Wassenaar Arrangement.¹⁸⁸ However, Taiwan's Foreign Trade Act provides the legal basis for managing the trade of Strategic High-tech Commodities and has a 'catch-all' control measure to strengthen end-user and end-uses controls. Taiwan adopted the EU's Community Regime for Control of Exports of Dual Use Items and Technology and the Common Military List of the EU in 2009.¹⁸⁹

Both Japan and South Korea actively seek partnerships with other countries in export controls. In May 2023, Japan, with other G7 countries (Canada, France, Germany, Italy, the UK and the US) and the EU, announced a joint statement which affirmed the importance of export-controls cooperation on critical technologies.¹⁹⁰ One of the most recent major developments in the region was the joint statement at the Camp David Summit in August 2023, which emphasised the importance of the US–Japan–ROK trilateral cooperation on export controls.¹⁹¹

Taiwan has independently stated that it will cooperate with US export controls on AI-related semiconductors to China.¹⁹² It has also followed US and EU regulations on export controls. It also holds dialogues with foreign countries on trade and investment that include discussions on FDI-screening and export controls. For example, the EU and Taiwan held a second annual Trade and Investment Dialogue in 2023.¹⁹³

Southeast Asia

All Southeast Asian states – except Cambodia and Laos – have export-control regulations. However, these regulations mostly concern agricultural and environmental

products. Only Singapore, Malaysia, the Philippines and Thailand have implemented – in 2002, 2010, 2015 and 2019, respectively – strategic trade-management acts, including export-control regulations based on the US Commerce Control List.¹⁹⁴ Singapore has implemented regulation in line with both the US Commerce Control List and the EU's control list. Myanmar's government has export-control regulations, also for arms and ammunitions, though not adopted in cooperation with any third country or international entity.¹⁹⁵ Vietnam requires exporters to obtain a licence for chemicals, explosive pre-substances and industrial explosives.¹⁹⁶ In 2022, Taiwan's Ministry of Economic Affairs expanded the scope of export restrictions to 57 products that fell within Export Control Classification Number Categories 3–9. In 2023, the list was further expanded to cover new products in categories 0–2, in line with EU and US regulations.¹⁹⁷ Though Malaysia has modelled its export-control regulations on the EU's control list, it is not a member of any of the four multilateral regimes governing export controls for conventional arms and dual-use goods and technologies (the Australia Group, the Wassenaar Arrangement, the MTCR or the NSG).

South Asia

All the countries in the South Asian region have export controls in place, although they vary greatly in restrictions, formulations (law and regulations in place) and responsible authorities. Several countries maintain their respective export policies, which have been enforced for decades, and regularly provide revised versions. India has the Foreign Trade (Development and Regulation) Act of 1992, integrated with the Foreign Trade Policy of 2015–20.¹⁹⁸ Additionally, a new Foreign Trade Policy 2023 has been announced.¹⁹⁹ Likewise, Bangladesh updates the 1950 Import and Export (Control) Act every three years (most recently in a 2021–24 version) and Sri Lanka recently amended its 1969 Imports and Exports (Control) Act.²⁰⁰

Pakistan relies on the more recent Export Control on Goods, Technologies, Material and Equipment related to Nuclear and Biological Weapons and their Delivery Systems Act (2004), since then amended five times, with the latest version released in 2022.²⁰¹ Bhutan and the Maldives, similarly, have published

export-control policies in recent years under the custom general regulations.²⁰²

India is the only regional country participating in bilateral and multilateral fora and is inscribed in international control mechanisms. The country first joined the MTCR in 2016, joining the Wassenaar Arrangement one year later, signalling a strong commitment to multilateral cooperation on export regulations and control over dual-use technologies. More recently, in 2023, India strengthened its ties with the EU, establishing the EU–India Trade and Technology Council. This bilateral platform is forged over a ‘common interest in ensuring security, prosperity and sustainable development based on shared values’ and aimed at strengthening strategic cooperation among two like-minded actors, against the background of ‘rival governance models’.²⁰³ It entails three working groups responsible for: trade, investment and resilience of supply chains for strategic technologies; green and clean energy technologies; and digital governance and digital connectivity.

Pakistan, although not a member of multilateral-regulation frameworks, has over the years made efforts to align with international export-control regimes. According to the Pakistani government, export-control lists have been harmonised with Wassenaar Arrangement guidelines, the NSG, the MTCR and the Australia Group.²⁰⁴

Oceania

In Oceania, both Australia and New Zealand have export controls in place. Australia’s export controls are regulated by legislation, including the Defence Trade Control Act, the Customs Act and the Weapons of Mass Destruction (Prevention of Proliferation) Act.²⁰⁵ In New Zealand, the Customs and Excise Act provides the legal basis for its export controls.²⁰⁶

Among the Pacific Islands states, only Cook Islands, Palau, Samoa, Tuvalu and Vanuatu have indigenous export-control regulations.²⁰⁷ French Polynesia, New Caledonia and Guam feature these as well to a certain extent, as an extension of French and US policies, respectively. Fiji, Kiribati, Marshall Islands, Micronesia, Nauru, Papua New Guinea, Timor-Leste and Solomon Islands do not have export-control regulations.

The US recognised Cook Islands as an independent state on 25 September 2023, which will allow for

‘expansion of military and diplomatic relations’, which date back to the Second World War.²⁰⁸

In Oceania, there is a high level of coordination on export controls. In June 2023, the Five Eyes countries – Australia, Canada, New Zealand, the UK and the US – committed to coordinating export-control enforcement.²⁰⁹

Who manages export-control regulations?

Northeast Asia

In Japan, the Ministry of Economy, Trade and Industry manages export-control regulations. In the ROK, the Ministry of Trade, Industry and Energy is in charge of export controls. In Taiwan, the Ministry of Economic Affairs’ Bureau of Foreign Trade manages the list and decides whether or not to grant export licences.²¹⁰ A number of other entities help regulate commodities, including the Industrial Development Bureau, the Atomic Energy Council, the Ministry of National Defense, the National Police Agency and the Ministry of Finance.²¹¹

Southeast Asia

In Malaysia, the Philippines, Singapore and Thailand, sub-sections of the respective ministries of trade and commerce manage export-control regulations.²¹² As such, the Singapore Customs organisation fulfils these tasks, whereas in Malaysia it is the Strategic Trade Secretariat. In Thailand it is the Department of Foreign Trade. In the Philippines, the Department of Trade and Industry is the executive and technical agency for the management of the strategic-goods trade, while the National Security Council’s Strategic Trade Management Committee has the central authority over export-control regulations. In Myanmar, the Ministry of Foreign Affairs regulates arms and ammunition exports.²¹³

South Asia

The government units and agencies responsible for export-control regulations vary across South Asian countries. India and Pakistan have created ad-hoc units, although each have taken a different approach. Pakistan’s Strategic Export Control Division falls under the Ministry of Foreign Affairs, whereas the Indian government has created the Interministerial Cooperation

Group, which operates at the intersection of various ministries and government departments.²¹⁴

In Bangladesh and Nepal, export controls are managed by Bangladesh's Ministry of Commerce and Nepal's Ministry of Industry, Commerce and Supplies, which Nepal has coupled with a dedicated Trade and Export Promotion Centre. In Bangladesh, export controls are managed by the Ministry of Commerce. In Nepal they are managed by the Ministry of Industry, Commerce and Supplies, which it has coupled with a dedicated Trade and Export Promotion Centre.²¹⁵ Similarly, in Sri Lanka and Bhutan, export controls fall under the responsibility of their finance ministries. Like Nepal, Bhutan has introduced an additional unit, the Department of Revenue and Customs.²¹⁶ In Bhutan, government agencies enforce export restrictions. For example, arms and ammunition restrictions are under the control of Royal Bhutan Police or aircraft systems under the Civil Aviation Authority.²¹⁷ The Maldives, under the Custom Act of 2011, has mandated a separate legal entity responsible for managing import and export controls.²¹⁸

Oceania

Australia's and New Zealand's export controls are respectively managed by the Defence Export Controls in the Ministry of Defence and the Ministry of Foreign Affairs and Trade, depending on the nature of the exports.

Although French Polynesia and New Caledonia have the right under the French division of competency law for collectivities to define their own security and defence policies, the relevant French authorities seem to be in charge of managing export-control regulations.²¹⁹ This applies to the US and Guam in a similar fashion. Though export controls for dual-use or strategic goods do not apply in the other Pacific Islands states, in Tuvalu the minister responsible for customs defines policies on exports of other goods; in Samoa, the Central Bank is tasked with ensuring that revenues from exports are repatriated to the island; the Ministry of Health and Medical Services controls Cook Islands' exports; and in Vanuatu, the respective ministry under which category the item to be exported falls regulates exports.²²⁰

What is considered in each country's export-control regulation?

Northeast Asia

Japan controls exports of both arms and dual-use items.²²¹ The Ministry of Trade, Industry and Energy controls defence, nuclear-related, dual-use and other strategic items in the ROK.²²² Taiwan's legislation covers dual-use and military end-use commodities, software and technology.²²³

Southeast Asia

Among Southeast Asian states with export-control regulations in place, in Malaysia, the Philippines, Singapore and Thailand, military and dual-use goods are included in export-control regulations.²²⁴ In Myanmar, arms and ammunitions complement the list of agricultural, mineral, marine and forestry products.²²⁵ Vietnam requires exporters to obtain government permits for goods 'subject to export control in accordance with international treaties to which Vietnam is a contracting partner' as well as chemicals, explosive pre-substances and industrial explosives.²²⁶ In Indonesia, rice, animal and bird products, wildlife, diamonds, tin, as well as metal scraps, are under export controls.²²⁷ In Brunei, export controls are exercised on items such as rice, sugar, timber, prawn refuse and palm oil.²²⁸

South Asia

In its national export policy, India provides a list of restricted goods under the acronym of SCOMET: special chemicals, organisms, materials, equipment and technologies.²²⁹ Pakistan has dedicated a specific legislation to 'Export Control on Goods, Technologies, Material and Equipment related to Nuclear and Biological Weapons and their Delivery Systems'.²³⁰

Both Bhutan and Bangladesh include arms and ammunitions in their national export policies. While Bangladesh's list is then limited to petrol and edible goods, Bhutan adds uninhabited aircraft systems/drones and wireless and remote sensing telecommunication, and broadcasting equipment. On the contrary, dual-use technology and arms and ammunitions are not included in the export-control lists of the Maldives, Nepal or Sri Lanka, which enumerate

mostly edible, animal, agricultural and pharmaceutical products.

Oceania

Australia regulates military and dual-use goods and technology in the items on the Defence and Strategic Goods List (DSGL). The DSGL covers 1) defence and related goods, software and technologies that are designed or adapted for use by the armed forces, and non-military goods that are inherently lethal, and 2) non-lethal dual-use goods, software and technologies.²³¹ Similarly, New Zealand controls exports on items on the New Zealand Strategic Goods List, which includes controlled military and dual-use goods, software and technology.²³²

The export regulations of French Polynesia, Guam and New Caledonia are in line with either the EU's strategic-goods list – including dual-use and military items – or the US Export Administration Regulations, for the case of the US military facilities on Guam. Among the other Pacific Islands states that have (indigenous) export-control regulations, none feature goods listed by the US or the EU. In Tuvalu, sensitive government data is included, whereas Vanuatu's policies revolve around cultural items, agricultural goods and those that contribute to climate change, such as ozone-depleting substances.²³³ Cook Islands, whose economy is heavily reliant on fishing, has export-control regulations on fish; and Samoa features a regulation by which all export revenues must be repatriated to the island.²³⁴

Are investment-screening mechanisms in place?

Northeast Asia

Both Japan and the ROK have investment-screening mechanisms in place. The principal laws in this area are the 1949 act (for Japan), and the 1998 act (for the ROK). Both countries are moving in the direction of tightening investment screening to protect sensitive technologies. One of the major shifts in Japan's screening was the 2019 amendment of the Foreign Exchange and Foreign Trade Act. As a result, foreign investors must notify the government in advance when they are acquiring '1% or more' of Japanese stocks in the designated sectors (previously,

the threshold was '10% or more').²³⁵ The ROK enacted the Regulations on Operation of Security Review Procedures for Foreign Investment, which requires foreign investors to indicate whether they are acquiring de facto control of a company and whether a purchase is related to certain criteria which pertains to national security.²³⁶ While under President Tsai Ing-Wen's leadership Taiwan has sought to attract investment, it has also tightened its FDI-screening mechanism since 2022 in order to prevent Chinese firms circumventing US export controls.²³⁷ The 1997 Statute for Investment by Foreign Nationals governs FDI in Taiwan, while the Measures on Investment Permits for people of the Mainland Area specifically outlines restrictions for nationals from the People's Republic of China.²³⁸ There is no guidance on the interpretation of 'national security' when deciding on foreign investment cases, and investments are decided on a case-by-case basis.²³⁹ Reaction from the general public could also influence a decision.²⁴⁰ No monetary or market share-based threshold is required to trigger a foreign-investment review.²⁴¹

Southeast Asia

Indonesia (with the exception of technological goods), Laos, Myanmar, the Philippines and Vietnam have investment-screening mechanisms.²⁴² However, in Indonesia, the government has shifted its approach from a negative-investment list to a positive-investment list. Now only six sectors are closed or restricted to investment from domestic and foreign entities, which are all linked to illegal drugs, gambling, endangered fishing, chemical production for warfare or related to climate change. The change was made due to the fact that the negative-investment list was deemed to dampen FDI and economic growth. Thailand and Malaysia have foreign-ownership restrictions in banking, insurance and telecommunications. However, there are no national-security screening mechanisms.²⁴³ In Brunei and Cambodia, there are no provisions for investment screening. Without a formal foreign-investment screening-mechanism in place, Singapore currently maintains oversight and control over FDI by way of legislative restrictions, though its conditions are generally favourable to foreign direct investment. Licensing regimes work through seeking approvals from sector regulators for any foreign investment in energy, telecommunications, broadcasting, the

domestic media sector, financial services, legal services, public accounting services, ports and airports and property ownership.²⁴⁴

South Asia

Among South Asian countries, most have regulatory frameworks to screen foreign investments that might hinder national security. India has an FDI-screening mechanism in place and, in 2020, the government issued a note adding a further layer to investment restrictions.²⁴⁵ With this amendment, the government imposed the need for prior authorisation by the government for investments coming from non-resident entities located in countries that share land borders with India. This action was aimed at ‘curbing opportunistic takeovers/acquisitions of Indian companies due to the current COVID-19 pandemic’.²⁴⁶ The regulation applies to all sectors and all sizes of investment.²⁴⁷

Pakistan has investment-screening mechanisms for FDIs. To preserve public safety and national security, it enforces restrictions on some investment sectors, such as arms and ammunitions, high explosives and radioactive substances. It also puts a threshold on foreign ownership for investments in specific sectors, including airlines, banking, agriculture and the media. Furthermore, Pakistani law imposes restrictions on investments coming from Indian and Israeli citizens. In Nepal, foreign investments are regulated by a combination of several laws, such as the Foreign Investment and Technology Transfer Act of 2019, rather than by national-security screenings. Similarly, Bangladesh and Sri Lanka apply restrictions to both foreign ownership (e.g., only 60% in telecommunications in Bangladesh) as well as sectors (e.g., arms, ammunition and defence equipment). Bhutan relies on the least structured screening mechanism, with only a ‘negative list’ of sectors subjected to control. The Maldives, on the other hand, has the national Foreign Direct Investment Policy of 2020, which restricts investments in specific sectors, such as manufacture of chemical products.

Oceania

In Oceania, both Australia and New Zealand have investment-screening mechanisms in place. Respectively, the Foreign Acquisitions and Takeovers

Act 1975 and the Overseas Investment Act 2005 provide the basic investment-screening frameworks.²⁴⁸

Investment-screening mechanisms are in place in Cook Islands, Marshall Islands, Palau, Vanuatu, and partly in Fiji. Though there is no screening mechanism in place in Samoa, there are sectors where 100% ownership is only possible for Samoan citizens, and certain sectors are subject to foreign ownership restrictions (such as fishing, manufacturing, services, and sanitation).²⁴⁹ However, the categories comprised in investment screenings across the Pacific Islands countries listed above do not restrict foreign investment in technology sectors. Rather, where investment-screening mechanisms are in place, they seek to protect indigenous industries, such as agriculture, marine resources, tourism and retail. Nonetheless, in the Marshall Islands the law on investment screening is not consistently enforced, allowing, for example, for foreign investors in Marshall Islands to enter partnership agreements with local Marshallese businesses.²⁵⁰ It is uncertain whether this is also the case across the other Pacific Islands states.

Who manages investment-screening regulations?

Northeast Asia

In Japan and the ROK, the Ministry of Economy, Trade and Industry and the Ministry of Trade, Industry and Energy respectively manage investment screening. In Taiwan, the Investment Commission of the Ministry of Economic Affairs manages foreign-investment reviews with cooperation from relevant government agencies. The Deputy Director-General of the National Security Bureau (NSB) plays an outsized role as the NSB’s comments carry the most weight in any decision on foreign investment.

Southeast Asia

In 2021, Indonesia established a new Ministry of Investment that manages investment-screening regulations.²⁵¹ Likewise, in 2023 Malaysia established an FDI Monitoring Committee under the Ministry of International Trade and Industry. However, this was only to monitor memoranda of understanding and FDI flows; this committee undertakes no screening.²⁵² Both Myanmar and the Philippines have

been trying to attract more FDI. In Myanmar, this is done through the Myanmar Investment Commission (MIC) under the auspices of Myanmar's Directorate of Investment and Company Administration. It was re-established in 2016 (having originally been established in 1994) to 'carry out investment promotion, facilitation, and coordination'.²⁵³ Additionally, the MIC assures that investments abide by the 2016 Myanmar Investment Law and can decide in which sectors investments are to be protected, restricted or prohibited.²⁵⁴ Since 2012, there has been a push to transform the MIC from a government-appointed body to an independent board; however, thus far there has been no reform progress. In the Philippines, the Philippine Board of Investments seeks to attract more foreign direct investment. This is done in cooperation with the Inter-Agency Investment Promotion Coordination Committee and the National Economic and Development Authority, which manage screenings. The Philippines' National Security Council also participates in decisions on foreign direct investment screening. In Singapore, as there is no official investment-screening mechanism, but instead, restrictions by ways of legislative and licensing regimes, the main regulatory bodies controlling FDI are linked to the area of investment. As such, in the case of real estate, the Singapore Land Authority, the Housing and Development Board and the Jurong Town Corporation are involved. The Info-communications Media Development Authority is the regulatory body for broadcasting and domestic media; whereas the Monetary Authority of Singapore is the regulatory body for financial services and banking.²⁵⁵ On 6 November 2023, however, the Singaporean government proposed the Significant Investments Review Bill, which will regulate investments by local and foreign investors in certain entities.²⁵⁶

When it comes to the management of investment-screening mechanisms, Vietnam has the greatest involvement of the authorities, requiring approval by the People's Committee in the province in which the project would be located, in addition to approval by the National Assembly of the Prime Minister for large-scale projects, such as investment in airports, seaports, casinos, oil and gas exploration, telecommunications and

networks infrastructure.²⁵⁷ Hence, in Vietnam, investment screening is a regional and geographic issue, more so than a domain-specific process (see Singapore) or a centralised one (see Indonesia), given the lack of one single agency dedicated to investment screening.

South Asia

India and the Maldives have set up a similar process to screen foreign investments, with two routes for FDI approval: 'automatic', or 'government'. For investments in India, under the government route, the Department of Promotion of Industry and International Trade must approve, along with the ministry with jurisdiction over the restricted sector.²⁵⁸

Pakistan and Bangladesh combine a dedicated authority and government bodies to manage their screening mechanisms. In Pakistan, the leading authority responsible for screenings is the Board of Investment and approval is also granted by the cabinet and prime minister. Likewise, Bangladesh has set up a dedicated agency to approve investments, the Investment Development Authority, along with the ministries responsible for restricted sectors.²⁵⁹ Lastly, Nepal dedicates two authorities to manage investment controls: the Department of Industry (in charge of screening investment proposals) and the Investment Board Nepal, chaired by the prime minister.²⁶⁰

Oceania

In Australia, the Foreign Investment Review Board in the Trade and Investment Commission manages investment screening.²⁶¹ In New Zealand, the treasury is in charge of investment screening.²⁶²

On Vanuatu, the Vanuatu Investment Promotion Authority operating under the Ministry of Tourism, Trade, Commerce & Ni-Vanuatu Business manages investment-screening regulations.²⁶³ In Marshall Islands, the Office of the Registrar of Foreign Investment, which was established when the investment-screening law entered force, together with the Ministry of Natural Resources and Development's Trade and Investment Division and the Office of the Attorney General, manage investment-screening regulations.²⁶⁴ In Palau and Cook Islands, foreign investors need to submit information on the level of investment,

investors' nationality, percentage of ownership and the duration of the investment respectively to the Foreign Investment Board or Cook Islands Investment Board, and in Palau additionally to the ministry in charge of the sector in which the investment will flow.²⁶⁵ In Samoa, the Ministry of Commerce, Industry and Labor manages investment-screening regulations.²⁶⁶

What technologies are considered in investment-screening regulations?

Northeast Asia

Japan has been adding new sectors to the 'core sectors', for which prior notification is required for general investors to purchase stocks. On top of the initial 12 industries (weapons, aircrafts, space, nuclear facilities, dual-use technologies, cyber security, electricity, gas, telecommunications, water supply, railway services and oil), Tokyo added pharmaceuticals and medical devices in 2019, metal-mining businesses for critical minerals in 2021 and nine more industries (fertilisers, permanent magnet, engineering machinery and industrial robots, semiconductors, storage battery, natural gas, metal and minerals, vessel parts, and metal 3D printers) in 2023.²⁶⁷

The ROK controls foreign investments in defence industries and what it deems National Core Technology (NCT).²⁶⁸ The ROK completely bans FDIs in nuclear-power generation, and the restricted technology sectors include certain forms of power generation and telecommunications.²⁶⁹ In 2022, the ROK enacted the Special Act to Protect National Strategic Industries, which requires stricter investment screening in NCT. NCTs include electrical and electronics, automobile and railway, steel, shipbuilding, nuclear power, ICT, space technology, biotechnology and machine and robotics.²⁷⁰

Taiwanese regulation limits foreign ownership in certain sectors to a specific percentage, such as in renewable energy, railway transport, freight transport by small trucks, pesticide manufactures, real-estate development, brokerage, leasing and trading.²⁷¹ Sectors closed to foreign investment on national-security grounds include public utilities, power distribution, natural gas, postal service, telecommunications, mass media, and air and sea transportation.²⁷²

Southeast Asia

In the Philippines, military-related industries, cyber infrastructure and pipeline transportation technologies are included in investment-screening regulations.²⁷³ In Thailand, regulations include business services, electricity and telecommunications; in Vietnam, television, banking, telecommunications, transportation, e-commerce and ICT are included.²⁷⁴ Singapore's decision to propose investment-screening legislation was made with the aim of bolstering Singapore's economic resilience and national-security interests. Analysts such as OCBC Bank chief economist Selena Ling stated that the Singaporean government is likely to take a highly calibrated approach to defining 'critical entities' in order to limit any potential negative impact on foreign investment and the economy.²⁷⁵

South Asia

According to India's FDI Policy, an array of technologies falls under the restrictions of investment-screening mechanisms.²⁷⁶ This includes both technology, such as cable networks or military technology of the defence industry, and information technology, as for e-commerce, and digital media. Among the sectors restricted by screening regulations, many featured have the potential for dual-use applications. Among these, civil aviation, satellites (establishment and operation), telecommunications and railway infrastructures (including signalling systems).

Among other regional countries, restrictions on investments in the defence sector feature in all national regulations – with the exception of the Maldives – including for arms, ammunition, defence equipment, military vehicles and aircraft. Telecommunications and media are the other sectors most subject to screening mechanisms; such mechanisms are in place in Bangladesh, the Maldives, Nepal and Pakistan, the only exception being Sri Lanka. Similar to India, Bangladesh and Sri Lanka screen investments in industries that might serve the development of dual-use technologies, such as aviation and infrastructural projects.

Oceania

Australia controls foreign investments in 'national security business'.²⁷⁷ This includes businesses responsible for critical-infrastructure assets, which are defined in the Security of Critical Infrastructure Act 2018.²⁷⁸ These critical-infrastructure assets include sectors such as

energy, communications, data storage and processing, financial services and markets, water and sewerage, healthcare and medical, higher education and research, food and grocery, transport, space technology and defence.²⁷⁹ New Zealand controls investments in strategically important industries and high-risk critical infrastructures, such as telecommunications infrastructure; entities with access to, or control over, dual-use or military technology; critical direct suppliers to the New Zealand Defence Force, the GCSB and the New Zealand Security Intelligence Service; and systemically important financial institutions and market infrastructure.²⁸⁰

With the exception of Palau, among the Pacific Islands states no technology is considered in investment-screening regulations. In Palau, every foreign investment is screened.²⁸¹

Disinformation in the Cyber Domain

What are the main concerns about disinformation in the cyber domain?

Northeast Asia

In Northeast Asia, besides common concerns, each country has specific and different threats in mind. In Japan, disinformation has not significantly threatened national security. While disinformation has not posed a significant threat to Japan's national security so far, officials recognise scenarios where disinformation could lead to social discord, such as in the event of a crisis in the Taiwan Strait, or a natural disaster. In the ROK, the greatest concern is not only external disinformation, but also internal disinformation that may undermine democracy. As political rivalries are intense in the ROK, it has been the case that government intelligence and the military has been involved in influence operations. Taiwan has been a major target for misinformation and disinformation campaigns that aim to undermine trust in Taiwan's democracy and governance and bring Taiwan closer to the mainland via political co-optation.²⁸²

Southeast Asia

For regional governments, disinformation emanating from domestic opposition groups is one of the main concerns. This is the case, for example, in Brunei,

Cambodia, Indonesia, Myanmar, Singapore, Thailand and Vietnam.²⁸³ Election interference by third countries, especially China, has been reported in Malaysia and Cambodia, as well as Chinese disinformation directed at the Philippines' territorial claims on the South China Sea.²⁸⁴

South Asia

Across South Asian countries, the proliferation of disinformation, misinformation and conspiracy theory is a common trend. 'Fake news' appears to be a challenge for all regional countries, particularly in relation to political parties and electoral campaigns, and often intensifies during the build-up to elections. In India, concern is rising over fake news circulating on digital platforms, which has resulted in episodes of physical violence.²⁸⁵ Disinformation thrives in recurring areas, common among several countries – such as COVID-19, ethnic or religious minorities – as well as international actors. Former Pakistani prime minister Imran Khan, for instance, shared his belief in a conspiracy against his government, allegedly orchestrated by the US. The circulation of this allegation on Twitter resulted in a rally in Islamabad in 2022 in support of the then-prime minister.²⁸⁶ Overall, weaponising fake news and disinformation may have a damaging impact not only on domestic politics but also on interstate relations. For example, an EU DisinfoLab report unveiled a 15-year-long disinformation campaign by Indian actors to discredit Pakistan and influence the UN and the EU.²⁸⁷

In Bangladesh, disinformation campaigns ahead of elections are a persistent issue. In September 2022, when the government called for 'good' commentators to counter 'propaganda', many articles suddenly appeared online praising the government, signed by authors who appeared to be made-up profiles. This happened again in September 2023, with many of the unknown authors also promoting anti-Washington and pro-Beijing narratives.²⁸⁸ In Nepal, the public's exposure to online threat is particularly concerning, with more than nine out of ten social-media users exposed to disinformation (according to a study by the Center for Media Research) and over 50% of internet users targeted by online threats.²⁸⁹

Oceania

Australia's and New Zealand's greatest concern is interference in their electoral processes. Disinformation by domestic and foreign actors is reported to have had an influence on the 2019 Australian federal election.²⁹⁰ New Zealand articulates that disinformation 'is impacting liberal democracies worldwide, eroding trust in institutions, and our ability to respond to it as a society is being tested'.²⁹¹

Among the Pacific Islands states, most disinformation in the cyber domain has been linked to (domestic) political misinformation, especially during pre-election periods, as well as COVID-19. However, countries have been struggling with several further categories of threats: third entities rigging international legislation, or the proposal by Marshall Islands, Solomon Islands and Vanuatu to introduce a carbon levy at the International Maritime Organisation in July 2023, or the shipping industry lobby paying off Cook Islands' UN negotiator; the pushing of anti-Western narratives, such as by China in Solomon Islands following their 2021 bilateral-security pact; and cyber attacks on critical (military) infrastructure on Guam or the pirating, downloading and distributing of copyrighted works digitally, in French Polynesia's capital, Pape'etē, in 2022.²⁹²

Which actors are considered the main perpetrators?

Northeast Asia

While not stating so officially, Japan assumes China to be the main instigating actor in any future Taiwan Strait crisis and is therefore concerned about Chinese information warfare in the event of a crisis or conflict. In the ROK, more weight is put on domestic perpetrators. In 2021, then president Moon Jae-in's government tried to pass a bill that would punish the media for publishing fake news, which could potentially have undermined freedom of speech.²⁹³ Although the bill was postponed, it showed Seoul's growing concerns about the impact of disinformation on domestic politics. In Taiwan, disinformation and misinformation is largely propagated by Chinese Communist Party-linked entities.

Southeast Asia

Among Southeast Asian states, the reported perpetrators are domestic opposition groups and China. According to various studies by Freedom House and other analysts, Chinese influence in Southeast Asia's media landscape is conducted through various means. This ranges from promoting positive narratives, connecting with influential individuals, and hacking. Depending on the recipient and the goal: in Myanmar, positive propaganda about China is disseminated in local networks; in Malaysia, 90% of the Chinese-language media is owned by a media company with strong links to China; in Cambodia in 2018, China hacked institutions relevant to the country's electoral system; in the Philippines, China is active in spreading disinformation about The Philippines' territorial claims in the South China Sea.²⁹⁴ In Singapore, a 2019 Institute for Strategic Research/French Defence College report found that China had been highly active in spreading disinformation. The Singaporean government, however, did not acknowledge the findings and even disparaged the report's findings, highlighting the sensitive and complex nature of Singapore-China relations.²⁹⁵ In Thailand, the government controls most of the media, fostering anti-separatist messaging during the 2019 military coup.²⁹⁶

South Asia

In many instances of disinformation campaigns in South Asian societies, the perpetrators are reported to be domestic actors. In India, for example, the proliferation of fake news can often be traced back to actors close to political parties, which seek to promote self-serving narratives.²⁹⁷ In many instances, fake news is initially disseminated by government actors, but bot-generated messages on social media and networks of volunteers close to political parties perpetuate and amplify the subsequent disinformation campaign.²⁹⁸ Although the threat in these cases can be considered to be internal, some external actors could see the potential to build on existing fake news and ignite disinformation. China, for example, could see a market for disinformation campaigns in India. Similarly, in Nepal, where online threats are a major concern, allegations have been made that China orchestrated some of the disinformation

campaigns circulating in the country.²⁹⁹ In Pakistan, the perpetrators of disinformation campaigns are thought to be both state and non-state actors, whereas in Bangladesh, the government is thought to be responsible for the deliberate spread of disinformation online.³⁰⁰

Oceania

Although not clearly stated, research points to China as the main challenge to Australia in the information space.³⁰¹ New Zealand specifies country-sponsored disinformation as a particular challenge and highlights the example of Russian disinformation related to the COVID-19 pandemic after December 2021 in its National Security Long-term Insights Briefing.³⁰²

In the Pacific Islands states, shipping and industrial lobbies perpetrate legislative rigging against stricter environmental-protection regulations. Though China is thought to be behind small-scale disinformation campaigns and attacks on critical infrastructure, no entity publicly acknowledges it to be a perpetrator, except for Guamanian and Australian experts and politicians addressing attacks in Pacific Islands states (such as in Papua New Guinea or Solomon Islands), or when China is featured as being ‘among others’, such as in Marshall Islands and Vanuatu.³⁰³

What resources have been dedicated to countering disinformation?

Northeast Asia

Japan’s measures to counter disinformation are still at an early stage of development. The ministries in question currently conduct research separately. Tokyo plans to establish a specialised organisation in 2024 to prepare for information warfare, with an aim to solidify the criteria by which to determine false information.³⁰⁴ South Korea dealt with disinformation successfully during the pandemic. The government made effective and frequent direct communications with people and strengthened public-private partnerships on fact checking.³⁰⁵ In Taiwan, civil society plays an important role in countering Chinese disinformation and misinformation efforts. Examples include Taiwan FactCheck Center, Cofacts and Doublethink Lab, which all help fact check online or via social-media apps.³⁰⁶ Doublethink Lab also

promotes tools to counter conspiracy theories and disinformation while volunteer-led FakeNewsCleaner holds regular media-literacy workshops.³⁰⁷ Taiwan’s government has also introduced measures to counter disinformation efforts, particularly through the Ministry of Digital Affairs.

Southeast Asia

Across Southeast Asian states, ‘legislative opportunism’ that seeks to curb voices of dissent in media has been a general feature. Singapore implemented the 2019 Protection from Online Falsehoods and Manipulation Act, which punishes ‘false statements of fact’ with a fine of up to SGD740 and a maximum prison sentence of up to ten years.³⁰⁸ The Cambodian government has been proceeding in the forced closure of opposition-news outlets and has implemented strict controls of the information domain with the passing of laws such as the Law on Telecommunications the Inter-Ministerial Prakas on Publication Controls of Website and Social Media Processing via Internet in the Kingdom of Cambodia, and the Sub-Decree on the Establishment of a National Internet Gateway.³⁰⁹ In Indonesia, the government adopted stronger defamation provisions under the new Criminal Code in 2022, which may also be abused to target opposition voices.³¹⁰ Thai healthcare advocates have faced governmental lawsuits on anti-corruption charges during the COVID-19 pandemic.³¹¹ In Vietnam, 40 members of the domestic opposition have been imprisoned under disinformation charges.³¹² Myanmar’s government has heightened its level of media censorship, while at the same time concluding a content-sharing agreement with Russia’s Sputnik news network in September 2023.³¹³ The Malaysian government used its emergency powers to implement a new fake-news ordinance in 2021 that imposes jail sentences of up to three years for people who publish or share any ‘wholly or partly false’ information about the pandemic or the state of emergency of January 2021.³¹⁴ Human Rights Watch has criticised the ordinance as posing a ‘serious threat to freedom of expression and privacy and the right to a fair trial’.³¹⁵ On threats emanating from foreign actors, however, Malaysia depicts notably high levels of local resilience and response (explaining China’s failed attempt to influence the 2018

elections), thanks to its foreign-ownership percentage caps in broadcasting and its 1998 Communications and Multimedia Act, which provides a legal mandate to defend a free and open internet and ensures transparency of the multimedia industries.³¹⁶ In Southeast Asian countries, the prevalence of cyber threats has spurred policy action. Some countries have created governmental- and semi-governmental bodies to counter disinformation. For example, in Vietnam, the Ministry of Information and Communications manages the Anti-Fake News Center.³¹⁷ Vietnam's Ministry of Information and Communications also announced three digital-transformation platforms for Vietnamese media outlets to counter disinformation, including a security-breach platform, an emergency-response platform and an e-newsroom management platform, which analyses public opinion on social media.³¹⁸ Vietnam also maintains a National Cyber Security Center. In 2012, the Lao government established LaoCERT, which is tasked with handling cyber-security incidents, within the Ministry of Technology and Communications. LaoCERT's capability was further enhanced by the 2015 Law on Prevention and Combating Cyber Crime with capabilities for enhanced database-systems protection, computer data and information, and server systems. In 2003, the Bruneian government created a Dedicated Authority for Info-communications Technology Industry, established the Behavioral Insights Unit with the WHO and set up a hotline to channel fake or malicious information to the government. In the Philippines, the Department of National Defense is tasked with countering foreign disinformation.³¹⁹

South Asia

National governments in South Asia have adopted similar strategies to counter disinformation. Their approaches focus primarily on four measures: bills and regulations; fact-checking initiatives; educational programmes; and institutional intervention (e.g., internet shutdowns). Bangladesh, India, Pakistan and Sri Lanka have adopted most of these measures. However, they rely on different legal frameworks to curb disinformation. Bangladesh, for instance, combines its ICT Act (2006) – which includes fake electronic publications – with the Digital Security Act

(2018) and the draft of its Cyber Security Strategy 2021–2025. Along with regulations, Bangladesh, Pakistan and Sri Lanka have also mandated specific government divisions with the authority to monitor and counter disinformation.³²⁰

Secondly, the four countries have launched fact-checking initiatives in various forms and involving different actors. In India, fact-checking has become a lucrative business and both institutional and independent agencies are available. However, fact-checking initiatives are not always effective. In Pakistan, for instance, the Ministry of Information opened a Twitter account named 'Fake News Buster' to expose fake news, which quickly became mostly inactive.³²¹ Thirdly, fact checking is often coupled with governmental educational programmes, addressing students as well as journalists. India and Pakistan are investing in digital literacy to counter disinformation, while in Bangladesh the government set up the 'cyber life' programme.³²² When the previous measures have failed, governments have, on some occasions, resorted to internet shutdowns, such as in India and Sri Lanka. These two countries have also introduced bans on social-media platforms. India, for example, banned Chinese mobile apps like WeChat, TikTok and Alipay in 2020, citing national-security risks.³²³

Fourthly, the institutional attempts made to counter disinformation have often resulted in a pattern of silencing dissident voices and infringing the right to freedom of opinion and expression. Hence the other face of disinformation is the weaponisation of countermeasures and cyber-crime charges. The Bangladeshi government promulgated a bill that entails imprisonment for spreading 'propaganda', which has been used to prosecute people expressing anti-government visions. This pattern has raised concern in Western capitals, which have denounced the government's attempt to silence criticism.³²⁴ Lastly, another limitation of South Asian countries' regulation of the information sphere is the lack of a definition for 'disinformation'. Consequently, countries lack clear legal frameworks to address this phenomenon. Governments rely on their respective cyber-security strategies, bills or information acts, and lack a cohesive regulatory effort to address disinformation specifically.

Oceania

Meanwhile, Australia has made key progress in countering disinformation, taking multiple approaches at an early stage. It created a taskforce for electoral integrity. The government also passed the foreign-interference laws in 2018, which added foreign-interference offences into the Criminal Code. Moreover, the Australian Electoral Commission launched a campaign against disinformation in 2022.³²⁵ The Australian Competition and Consumer Commission has also conducted inquiries into the impacts of disinformation on digital platforms.³²⁶

In New Zealand, the Department of the Prime Minister and Cabinet is coordinating policies to develop the whole-of-society approach to disinformation. Although each ministry is responsible for specific disinformation issues, the cabinet takes the lead in ‘convening a civil society-led group to scope longer-term work’, ‘support for capacity-building and community resilience’ and ‘commissioning public research and analysis into the problem’.³²⁷

In the Pacific Islands states, Timor-Leste’s ‘Criminal Defamation Law’ stands out as emulation of authoritarian-style media laws in other South Asian and Southeast Asian states.³²⁸ Conversely, other countries have joined international campaigns and initiatives to increase media literacy, such as the UN’s 2020 #PledgeToPause and #TakeCareBeforeYouShare campaign.³²⁹ Vanuatu chose to increase governmental transparency by allowing media to report more accurately on government activities with its 2016 Right to Information Act, and French Polynesia stands out as a front runner (also among European countries) in the enforcement of General Data Protection Regulation regulations and resilience against cyber crime, even leading French delegations to train on the island.³³⁰

Does the government seek partnership with other countries?

Northeast Asia

In Northeast Asia, the countries are seeking to deepen international cooperation to counter disinformation. The Japanese government is partnering with NATO on disinformation, alongside cooperation in other technology fields.³³¹ At the Camp David Summit in August 2023, the

three countries in attendance – Japan, the ROK and the US – announced plans to coordinate forthwith in countering disinformation.³³² Recognising that Taiwan is a battlefield for China to test hybrid threats, Western governments are increasingly looking at Taiwan’s experience of China-conducted disinformation efforts and the government and grassroots responses to it. In 2018, the US and Taiwan agreed to strengthen cooperation on disinformation.³³³ In 2021, an EU Disinformation Committee travelled to Taiwan to learn from Taiwan’s experience, while the EU Parliament has encouraged the EU and its member states to deepen cooperation with Taiwan on countering foreign interference and disinformation.³³⁴

Southeast Asia

Together with the US, the Bruneian government has developed the ‘Harmony Square’ game, targeted at the training of high schoolers in identifying fake news. Brunei and Malaysia, as well as Cambodia, have teamed up with the WHO and the United Nations Educational, Scientific and Cultural Organization (UNESCO), respectively to gather information on COVID-19 and to regulate the health infodemic surrounding it.³³⁵ Nonetheless, the UN has deemed the Brunei government’s measures as being too harsh and repressive, especially surrounding the case of the charging of a woman on a false COVID-19 statement.³³⁶ Singaporean government officials have been participating in international panels on combatting disinformation. The government has also passed the 2019 Disinformation Act, which has been criticised as ‘not complying with international law and standards protecting the right to freedom of opinion, expression and information’ by the International Confederation of Jurists.³³⁷ Myanmar’s Global New Light and Russia’s Sputnik concluded a content-sharing agreement in 2023.³³⁸

South Asia

Although the proliferation of fake news seems to be a common challenge among all South Asian governments, there is no regional initiative to cooperate on countermeasures. On the contrary, there are reports that disinformation has been spread against foreign state-actors within the region, for example, by the ruling party in India, the Bharatiya Janata Party (BJP), during

the Kashmir crisis with Pakistan in 2019.³³⁹ International actors have also criticised the government's censorship of domestic political debate in the name of national security. In this regard, some highlight how regional states' growing economic ties with China might result in further cooperation even in the sphere of information and disinformation, leading to a worrying scenario of even harsher censorship enforced in South Asian countries, such as in Pakistan. The Quad has flagged its commitment to countering Chinese disinformation campaigns in the region.³⁴⁰

Nonetheless, some South Asian countries have engaged in a joint effort with international institutions to prevent and counter disinformation. India, as a Quad member, recognises disinformation as one of the regional challenges that the partnership should address. The Quad also aims to strengthen resilience against disinformation and cyber crime at a regional level.³⁴¹ In Nepal, where fake news on the COVID-19 pandemic has had an impact on public health and the vaccination campaign, the government has cooperated with the WHO and UNICEF to provide accurate information on the virus.³⁴² Likewise, the Maldivian government, in a joint effort with the UN Development Programme (UNDP), set up the Digital Citizen Learning Portal, offering courses on digital literacy, to increase resilience during the pandemic.³⁴³ Bhutan engaged with the EU on a one-year project to empower journalists, local governments and youth against the spread of disinformation.³⁴⁴ In Pakistan, the UNESCO Media and Information Literacy programme has invested in teaching digital literacy to online users. In India and Pakistan, private actors have

also taken the initiative. In 2018, Google News launched a training programme for 8,000 Indian journalists, to spread awareness and promote fact checking as a practice to curb disinformation.³⁴⁵ Meanwhile in Pakistan, Facebook cooperated with the government on a number of occasions, including to remove disinformation campaigns that would hinder public health.³⁴⁶

Oceania

In Oceania, countries actively seek partnerships with other countries in countering disinformation. Both Australia and New Zealand share knowledge and coordinate policies on disinformation with the other Five Eyes countries. Moreover, Australia is moving to cooperate on disinformation with the other Quad countries.³⁴⁷

In particular, Australia, New Zealand, the UK and the US provide assistance in the digital domain to Pacific Islands states.³⁴⁸ In December 2022, Australia and Vanuatu signed a security pact that focuses on and comprises humanitarian assistance, disaster relief, law enforcement, cyber security, defence, border security and maritime safety as a reaction to China's defence pact with Solomon Islands.³⁴⁹ This was hailed as a great success in curtailing Chinese influence in the Pacific Islands states. However, Vanuatu's parliament is yet to ratify the deal, with parliament's signature having been cast into doubt due to the deal possibly undermining Vanuatu's relationship with China.³⁵⁰ Most Pacific Islands states seek further partnerships with international organisations, such as the UN and the UNDP, as well as regional alliances, such as Northern Mariana States–Micronesia–Palau–Guam, or Samoa–Cook Islands–Niue.³⁵¹

3. Comparisons between Europe and the Indo-Pacific

National Critical-infrastructure Protection

The EU, Northeast Asian countries, Australia and New Zealand have similar definitions of national critical infrastructure; however, other countries in the Indo-Pacific are more focused on cyber security.

The supranational nature of the EU's definition of national critical infrastructure (NCI) means that in addition to its wide-ranging list of assets and systems that are essential for societal functions, the EU adds a conditional clause that qualifies the disruption of European critical infrastructure as impacting at least two member states. While the EU has a list of at least 11 critical sectors, member states are required to identify critical entities within each sector in the coming years.

Northeast Asian countries appear to have the most developed definitions of NCI. This is, to some extent, not surprising, considering their close geographic proximity to adversarial states and perceptions of nearby threats. Contributing to this perception is their high level of economic development and modern and next-generation infrastructure, which increase the numbers of threat vectors that may be at risk. While most countries include various levels of specificity in their definitions of NCI, Taiwan also

includes 'high-tech parks'. This may be an indirect reference to the country's high-tech semiconductor industry and key players, such as semiconductor manufacturer TSMC.

In Southeast Asia, South Asia and the Pacific, this trend continues, where larger or more economically advanced countries have developed more nuanced frameworks for understanding their NCI. In Southeast Asia, only the Philippines and Indonesia have distinct policies and definitions, while other states have instead limited their national policies to the cyber domain and have developed legislation to protect critical national-information infrastructure. Cambodia is focused on combatting cyber crime. In South Asia definitions are blurred and often linked to National Critical Information Infrastructure (NCII) legislation that focuses on the cyber security of various sectors. In India, definitions are expanded to include defence, space, law enforcement and critical manufacturing. In the Pacific, Australia and New Zealand have clear definitions and legislation on NCI protection, while smaller Pacific Islands states only define NCI as physical assets. Of the smaller island overseas territories, French Polynesia, Guam and New Caledonia have adopted the French or US NCI legislation that encompasses both physical and digital assets.

Table 1: National critical-infrastructure protection

EU	Northeast Asia	Southeast Asia	South Asia	Oceania
11 critical sectors defined in European legislation	Wide-ranging definitions that cover services and assets	Predominantly focused on cyber domain	Predominantly focused on the cyber domain and physical assets, with some defence sectors included	Australia/New Zealand and overseas island territories define NCI as physical and digital assets
Security-focused policy approach, with mention of natural disasters	Security-focused policy approach, with specific focus on economic security	Prosperity-focused policy approach	Prosperity-focused policy approach	Prosperity-focused policy approach, security risks from natural disasters
EU member states hold competence over critical-infrastructure protection; different countries have taken different approaches, but Chinese investment in digital CNI is declining	Except in South Korea, Chinese investment in CNI is restricted	Chinese investment in digital CNI not restricted	Except for India, Chinese investment in CNI not restricted	Except for Australia and New Zealand, Chinese investment in CNI not restricted

Note: CNI = critical national infrastructure
Source: IISS research

Larger and more developed countries have centralised and cross-government approaches to critical-infrastructure development, but smaller and less developed countries lack centralised government stakeholders.

The EU and its member states regulate the EU critical infrastructure (EUCI) and the NCI respectively. However, member states hold competence while the EU can set standards and guidelines.

In Japan, South Korea and Taiwan, the cabinet or the prime minister's office oversees NCI protection, with dedicated agencies, committees or taskforces assigned to them. In Southeast Asia, owing to the primary focus on NCII protection, departments in charge of information and communications technologies (ICT) take the lead. An exception is Thailand, where the Digital Economy Promotion agency takes the lead. In South Asia the picture is more mixed, with more developed and larger economies allocating responsibilities to specific ministries, and smaller economies dedicating specific departments in government to the task. A number, like the Maldives, do not have any dedicated ministries or departments yet. The picture is similar in the Pacific. In Australia, the Department of Home Affairs and the Prime Minister's Office, in coordination with the Cabinet's National Security Committee, oversee NCI protection, while in New Zealand the Government Communications Security Bureau oversees this task. In the smaller Pacific Islands states various ministries are in charge, ranging from public-utility bureaus to national-security forces to ministries of home affairs. In Kiribati, the national CERT takes the lead.

The EU and like-minded Indo-Pacific states take a predominantly security-driven approach, while developing economies in the Indo-Pacific are primarily concerned with national prosperity or security risks posed by natural disasters and non-state actors.

At the level of the EU – as well as at a national level for its member states – debates about regulating NCI and EUCI lean heavily towards security. Debates particularly revolve around dependencies on foreign suppliers and threats posed by non-liberal states. In Northeast Asia, Australia and New Zealand, debates around

national economic-security strategies have highlighted the interconnection between national security and prosperity. An exception to this is Taiwan, where security takes a more prominent role in debates due to the ongoing and real threat posed by China. In Southeast Asia, discourse seems to be more split, though not along economic lines. Most countries take a more prosperity-focused approach, while Brunei, Malaysia and Singapore emphasise security concerns. In South Asia, the main concern is natural disasters, though India and Nepal have begun to integrate security concerns into their NCI-protection debates. Overall, the importance of economic development and prosperity weighs more strongly in national debates. This is also true in the Pacific Islands states, where countries recognise the importance of NCI and NCII to national prosperity and seek to protect NCI from natural disasters. The EU's debate also mentions the potential disruption caused by natural disasters.

As a result of different national priorities and approaches to NCI protection, the majority of countries in the Indo-Pacific have not restricted Chinese investment in NCI.

Chinese state-owned companies have invested significantly in European port infrastructure as well as in national telecommunications networks. However, since 2019, there has been some pushback following national-level and EU-level debates about the risks posed by foreign investment in NCI and EUCI. Some EU member states have since passed policies to extract Chinese components from the latter. However, there remains an uneven approach across member states, and most recently Germany allowed a Chinese investor to invest in the Port of Hamburg.

Potentially as a result of the diverging approaches to NCI protection in the four subregions examined, the majority of countries in the Indo-Pacific studied in this report have avoided restricting Chinese technology into NCI or NCII. The exceptions are in Northeast Asia, where governments have restricted Chinese participation in NCII entirely (Japan and Taiwan) or partially (the ROK). In Southeast Asia, South Asia and the Pacific, only Australia and India have taken measures to restrict Chinese participation in NCI or NCII. However, while some countries

have not taken legislative action to enforce restrictions, national government tenders for NCII contracts have been awarded to non-Chinese companies, as was the case in Singapore’s national 5G rollout.

National AI Strategies

Not all Indo-Pacific countries have AI strategies in place, and goals for AI strategies differ between the EU and Indo-Pacific countries.

While EU member states are encouraged to develop their own national AI strategies, the EU develops guidelines and regulations at the EU level. The EU also plays a particular role in developing a legal framework for ethical AI, and takes a risk-based approach. The EU’s goal is to become a global regulatory leader in ethical AI, aiming to ensure that AI systems are ‘safe, transparent, traceable, non-discriminatory and environmentally friendly’.³⁵²

Developed economies in the Indo-Pacific or overseas territories are more likely to have national AI strategies in place. Australia, French Polynesia, India, Guam, Japan, New Caledonia, the ROK, Singapore and Taiwan have such strategies. In Southeast Asia, Indonesia, Thailand and Vietnam have them. Others have strategies in development, including Cambodia, New Zealand, Pakistan and the Philippines. Some countries have digital strategies, e-commerce strategies or other strategies in place that are focused on economic development and lack a centralised and comprehensive national approach to AI. Smaller countries recognise the needs for national AI strategies but are yet to formulate centralised approaches.

Japan, the ROK and Taiwan have somewhat similar AI objectives, focused on improving industrial competitiveness and harnessing the positive aspects of AI for economic growth and addressing demographic changes. However, Japan also seeks to address natural disasters through AI while Taiwan seeks to use it to combat climate change. Japan and Australia both have ambitions to become leaders in trustworthy AI and play a global role in AI regulatory development. In Southeast Asia, the focus is almost entirely on development and prosperity-related ambitions to transform national economies, infrastructure and workforces. In South Asia and the Pacific, countries are either focused on societal transformation in the Fourth Industrial Revolution or economic development with an emphasis on manufacturing, finance and trade. Pakistan specifically makes mention of the importance of AI to defence transformation.

Specific agencies dedicated to national AI strategies are uncommon; however, most countries in the Indo-Pacific and the EU take a multistakeholder and whole-of-society approach to strategy formulation.

The EU’s approach is unique in the sense that, as a supranational entity, it is in the process of establishing a specific EU AI Office to coordinate cross-border implementation and investigation. In the Indo-Pacific, most countries that have a national AI strategy in place take cross-governmental approaches to designing and implementing them. However, in India, Singapore and Taiwan, single institutions have been assigned responsibility for oversight of national AI-strategy

Table 2: National AI strategies				
EU	Northeast Asia	Southeast Asia	South Asia	Oceania
EU AI Act	National AI strategies in place	Developed and emerging economies have AI strategies in place; smaller and less developed economies recognise the need for one, but do not yet have one in place	Developed and emerging economies have AI strategies in place; smaller and less developed economies recognise the need for one, but do not yet have one in place	Developed economies and overseas territories have AI strategies in place, but smaller and less developed economies do not
Focus on regulating trustworthy AI, improving innovative competitiveness, addressing demographic challenges	Focus on regulating trustworthy AI, improving innovative competitiveness, addressing demographic challenges and potential to use AI to address natural disasters	Focus on societal impact, socio-economic development and prosperity	Focus on societal transformation and Fourth Industrial Revolution, impacts on labour	Aside from more extensive areas of focus in developed economies, focus on societal transformation and Fourth Industrial Revolution

Source: IISS research

implementation and development. Most countries that have an AI strategy in place take a whole-of-society approach, with its development involving academia and industry. Both in the EU and the Indo-Pacific, industry (mature, small and medium-sized enterprises, as well as start-ups) and academic participation seeks to align government policies with innovation, while academia is also included to meet the needs of nurturing AI talent. The EU also includes civil society and social partners in its approach.

The EU and specific Indo-Pacific countries already cooperate on AI standards and regulatory diplomacy, but countries in the Indo-Pacific also cooperate with Russia and China.

The EU's AI Act specifically calls for promotion of its model for global cooperation on AI standards that are consistent with EU values. The EU actively engages in multilateral forums on AI and supports multilateral initiatives that help low-income countries develop their own national AI strategies. Northeast Asian countries, Australia and New Zealand are already heavily engaged in multilateral and minilateral partnerships on AI development and alignment. The EU, the UK and the US are seen as their primary partners. In Southeast Asia and South Asia, the Maldives, Pakistan, Singapore and Vietnam engage in bilateral cooperation. This cooperation is not always with European countries or the US. Indeed, Pakistan has an AI collaboration programme with China. Indonesia sees partnership through the lens of attracting foreign direct investment (FDI) and is particularly interested in investment from Chinese, Japanese and Korean tech firms in its AI sector. The EU, Australia, India, New Zealand and Singapore seek to be at the forefront of regulating and standard-setting in multilateral institutions and standard-setting bodies.

The challenges to implementing AI strategies are different depending on local context, though some challenges are shared across the EU and Indo-Pacific.

The challenges that the EU faces in implementing its AI Act – and playing a legal role in AI regulation in Europe – are unique compared to the challenges faced by Indo-Pacific countries. In particular, the former

challenges revolve around the limitations of EU and member state competencies.

In Northeast Asia and developed economies, challenges to national AI-strategy development and implementation are listed as delays in digitalisation, lack of talent and trust and a potential lack of legal safeguards. Despite Japan and South Korea being highly advanced economies, research points to Northeast Asian governments' low levels of digitalisation of governments as a hinderance to AI implementation. The lack of regulatory frameworks and ethical safeguards is also mentioned as a specific concern in South Asian countries, who also point to a need for digital literacy. In South Korea, the lack of data available to companies and individuals for AI-technology development was specifically mentioned, while there are also concerns over the potential inequalities that may result from uneven application of AI technologies in national governments, both between countries and within societies. This last point is of particular concern in countries of lower economic development, where manufacturing sectors are significant sources of employment. In these countries, automation could cause political instability. In Southeast Asian countries with booming start-up sectors, like Vietnam, the lack of domestic funding for AI projects and companies means that these states remain reliant on FDI for the development of these sectors. Taiwan faces the unique challenge of finding its AI-relevant technology sector at the centre of a technological rivalry between the US and China. This context requires Taiwan to position itself carefully.

Protection of National Innovation Ecosystems

Barring Cambodia and Laos, all countries in the Indo-Pacific participate in export-control regulations. However, the investment-screening landscape across the EU and Indo-Pacific is less active and less homogenous in terms of approaches taken.

All countries in the EU and the Indo-Pacific, with the exception of Cambodia and Laos, have export controls in place. The EU is party to international and European export-control regimes. However, particularly when it comes to defence or dual-use technologies, not all Indo-Pacific countries participate equally in international

Table 3: **Protection of national innovation ecosystems**

EU	Northeast Asia	Southeast Asia	South Asia	Oceania
Export controls focused on military and dual-use technologies; some EU member states abide by US export controls on technology components, such as semiconductors	Export controls focused on military and dual-use technologies	Export controls focused on military and dual-use technologies – with the exception of Cambodia and Laos	Export controls on military and dual-use technologies	Export controls on military and dual-use technologies
Investment-screening mechanism regulation as guidance, but unequal application across EU member states	Investment-screening mechanisms in place in all countries	Uneven investment-screening regulatory landscape; some countries lack centralised systems for screening, instead take a regional approach	Uneven investment-screening regulatory landscape; smaller and less developed countries do not have any in place; some have passed regulation without the development of a formal mechanism	Uneven investment-screening regulatory landscape. Smaller and less developed countries do not have any in place
Investment-screening policy is security focused	Investment-screening policy is security focused	Investment-screening policy, when in place, is largely focused on encouraging foreign investment and prosperity	Investment-screening policy, when in place, is security focused – particularly in India	When in place, investment-screening policy is security focused

Source: IISS research

export-control regimes, such as the Missile Technology Control Regime, US Control List or the EU's Wassenaar Arrangement. As is the case in other areas of digital and technology legislation, the more developed economies have the most advanced export-control legislation and are the most engaged in multilateral export regulations. Furthermore, in the Indo-Pacific, Japan currently participates in US-led export-control restrictions on China, which focus on semiconductors and AI. It is yet unclear how regional participation in US export restrictions on China might be affected if such restrictions cover more technologies.

The EU has implemented an FDI-screening regulation that requires EU member states to put national screening mechanisms in place that meet an EU-legislated minimum requirement for thresholds. However, due to EU vs member-state competence, the EU's regulation only acts as a guidance, while final authority rests with member states. The EU's investment-screening landscape is thus an uneven one in regulatory terms.

Indo-Pacific states and overseas territories have taken various approaches to national investment screening. The most advanced economies – as well as the large emerging economies – have investment-screening mechanisms in place, including Australia, Japan, New Zealand, the ROK and Taiwan. These are based on national-security considerations as well as competitiveness. Taiwan, however, does not provide guidance on its definition of national security, nor does it outline what thresholds must be

met in order for investment-screening procedures to be triggered. Given their high exposure to China and their concerns related to Chinese investments, Japan and the ROK are attempting to strike a balance between pursuing economic growth and protecting national security.

Indonesia, Laos, Malaysia, Myanmar, the Philippines and Vietnam have investment-screening mechanisms in place. Not all investment-screening regulations are alike and in these countries, the focus is more on limiting screening to promote investment. In Indonesia, the government regulates very few sectors for investment and instead has focused on encouraging foreign investment for economic growth.

As for NCIs, in most South Asian countries, the discourse around digital and technological innovation is focused on prosperity and the potential to boost economic growth. Countries like Bangladesh, Maldives and Pakistan have open-investment regimes to attract foreign capital, even in new technology sectors. Bangladesh, for instance, launched its Hi-Tech Park as one of the country's three special economic zones. Although inward investments are subject to some degree of screening controls (by the area's authority – Bangladesh Hi-tech Park Authority), the priority is developing an 'IT/High-tech industry in Bangladesh'.³⁵³

In some countries, national services and infrastructure are restricted for national defence, such as telecommunications and media in South Asia and banking in Thailand and Malaysia. However, like Thailand and Malaysia, Pacific Islands states have regulations in place that restrict

investment but do not necessarily act as a formal screening mechanism. This is the case for indigenous industries, such as agriculture, marine resources, tourism and retail. The national approach to innovation among Pacific Islands states is very much focused on prosperity. This approach is not limited to developing countries – in Singapore there is oversight through regulation and investment-licensing requirements without an official screening mechanism.

Similar agencies share responsibility for investment screening and export controls; however, in some Indo-Pacific states, regional authorities within national systems also play decisive roles.

In the EU, member states have competence over export-control regulation and investment-screening mechanisms, while the EU Commission provides guidance.

In most countries across the various Indo-Pacific subregions, trade and economic ministries oversee the implementation of export-control regulations and their development. In smaller Pacific Islands states, central banks or various other ministries – such as the health ministry, or the ministry that is relevant to the exported goods in question – take the lead.

In most countries and entities, the same government ministries and departments manage national investment-screening mechanisms and regulation. However, in some cases, national-security agencies also play an important role. This is the case in Taiwan, for example.

In Indonesia, Malaysia and Myanmar, national ministries and dedicated committees oversee foreign investment. However, their primary responsibility is to promote FDIs in their countries rather than to screen them. Of the Southeast Asian countries, only Vietnam has developed a formal investment-screening mechanism across government departments (although in Singapore a similar approach is under consideration). In the Philippines, this prosperity-focused approach is reflected in a decentralised system of investment screening. As such, regional authorities, rather than central ministries, decide on foreign investments.

The EU and Indo-Pacific countries have similar focus areas in export controls; however, as investment-screening mechanisms serve

different purposes in different countries, they also target different sectors.

In the EU, Northeast Asia, Southeast Asia, South Asia and Australia and New Zealand, export controls are focused on dual-use and defence commodities, software or technologies. In other Indo-Pacific subregions, national export controls also contain some level of defence-related measures (such as ammunition and arms), as is the case in some South Asian countries. However, in the Pacific Islands, export controls specifically restrict the export of scarce natural resources, agricultural products or cultural items. Southeast Asian countries apply export controls to both defence, dual-use or natural-resource products. Some governments are even more specific, such as Bhutan, which restricts the export of uninhabited aerial vehicles and drones, remote-sensing technologies and broadcasting equipment, and Tuvalu, which restricts the sharing of sensitive government data with overseas actors.

In Australia, Japan, New Zealand, the ROK and Taiwan, as well as the EU, foreign investments in areas of national security are controlled. Across the states mentioned, many industries fall into this category, including healthcare and pharmaceuticals, transportation infrastructure, sensitive and emerging technologies and ICT and government services, among others. In the EU, foreign investments in raw materials are also controlled. In Southeast Asia and South Asia, governments are predominantly concerned with screening or restricting investments in defence, telecommunications, power distribution and energy, ICT, transportation and media.

Disinformation in the Cyber Domain

In liberal democracies in the EU and Indo-Pacific, disinformation is seen as a threat to democratic systems and societal resilience. However, some countries use counter-disinformation strategies as a guise for political censorship. The main perpetrators of disinformation thus range from external state actors to domestic political opposition parties.

In Australia and New Zealand, as well as the EU and Northeast Asia, governments are concerned about foreign disinformation and misinformation that seeks to

influence electoral voting, erode trust in democratic institutions and cause social discord, particularly during potential crises in the future that could impact governments' policy options. Existing research indicates that China conducts disinformation campaigns in the EU and all Indo-Pacific countries, with the exception of Pakistan and India.

Australia, Japan, New Zealand, the ROK and Taiwan, as well as the EU and South China Sea-claimant state governments, have directly singled out China as a specific threat. The EU also reports Russian disinformation activity against the EU and its member states. However, in the case of South Korea and countries in Southeast Asia, South Asia and the Pacific Islands, central governments point to domestic actors in the disinformation space. National governments have reportedly also conducted counter-disinformation efforts against domestic actors, such as opposition political parties. Governments thus engage in political censorship under the guise of countering disinformation. In South Asia, disinformation is particularly a concern with regards to ethnic or religious minorities, COVID-19, elections, and international actors. In Pakistan, for example, conspiracy theories claim the US promotes 'fake news' about the government. Disinformation campaigns are not only directed against the state in the target country, but also target third countries. In the Indo-Pacific, disinformation campaigns are directed against the EU and the US. In the Pacific Islands, disinformation campaigns by third entities, who seek to influence specific voting

outcomes in international organisations, have also been recorded.

More developed and prosperous countries host a variety of counter-disinformation initiatives, whether government- or civil society-led. However, smaller and less prosperous countries' efforts are nascent.

In contrast to the EU's varied toolbox of counter-disinformation initiatives and bodies, the development of specific government framework to combat disinformation in the Indo-Pacific is still nascent. The Australian and New Zealand governments have focused on countering foreign interference and influence and employ a whole-of-society approach. As an indication of the extensive disinformation campaigns that have been directed against it, Taiwan has an extensive framework of government and grassroots mechanisms, information points and apps.

In some countries, particularly in Southeast Asia and South Asia, national governments and civil society have implemented specific legislation, fact-checking initiatives, educational programmes and institutional shutdowns to combat digital disinformation and cyber attacks. At other times, these measures have been used by governments to restrict opposition parties and activist ability to criticise the government in power. In the Pacific Islands, countries have taken limited but targeted measures, whether to improve media literacy, increase media access to government, or enforce General Data Protection Regulation regulations.

Table 4: Disinformation in the cyber domain

EU	Northeast Asia	Southeast Asia	South Asia	Oceania
Disinformation seen as threat to democratic systems and societal resilience	Disinformation seen as threat to democratic systems and societal resilience; concern about domestic disinformation raised in South Korea	Concern about domestic disinformation; disinformation campaigns targeted to change opinion of third countries	Concern about domestic disinformation; disinformation campaigns targeted to change opinion of third countries	In Australia and New Zealand, disinformation seen as threat to democratic systems and societal resilience; disinformation campaigns targeted to change opinion of third-party countries and voting in international organisations
EU-funded initiatives on countering disinformation in place, employing a whole-of-society approach	Countering disinformation initiatives in place, employing a whole-of-society approach, particularly in societies that are high targets, such as in Taiwan; civil society plays a key role	Countering disinformation initiatives in place, employing a whole-of-society approach; civil society plays a key role	Countering disinformation initiatives in place, employing a whole-of-society approach; civil society plays a key role; in smaller economies, policies and efforts are nascent	Except Australia and New Zealand, in smaller economies, policies and efforts are nascent

Source: IISS research

The EU, its member states, the US and UN are seen as the partners of choice for counter-disinformation cooperation in the Indo-Pacific; however, private sectors are also increasingly active.

The EU already cooperates with a host of governments on tackling disinformation, particularly with like-minded liberal democracies. Northeast Asian governments are viewed as battlegrounds for Chinese disinformation campaigns and as such are attractive partners to the EU and its member states for sharing best practices. In Southeast Asia, the UN is the predominant

partner of choice to date on projects that seek to counter COVID-19 disinformation. The Quad has flagged its commitment to countering Chinese disinformation campaigns, specifically in the Indo-Pacific. However, partnership is not limited to Western countries or international organisations. For example, Russia has partnered with Myanmar for a content-sharing agreement.

Private-sector companies are also engaged in the region, with Facebook and Google, for example, providing training programmes for journalists and cooperating with governments on responding to disinformation campaigns as they arise or on promoting fact-checking practices.

Conclusion

This report seeks to compare the approaches of the European Union and Indo-Pacific states with regard to four aspects of the global digital order: national approaches to protecting critical infrastructure; national AI-strategy development; national approaches to protecting national innovation ecosystems through export controls and investment-screening legislation; and national approaches to countering disinformation campaigns.

The report has identified commonalities and differences between the EU and Indo-Pacific countries. In general, national approaches depend on the level of economic development in each country and their subsequent focus on either prosperity or security as a priority. Developing economies and less developed countries have tended to prioritise prosperity when it comes to security over national decision-making on issues ranging from critical-infrastructure protection to whether to implement investment-screening regulations. However, even within like-minded countries (such as within the EU), approaches to investment screening are varied, and EU member states have also shown a tendency to prioritise national prosperity over security considerations.

A key difference between countries is the types of actors involved in decision-making and legislation development. While the EU takes a supranational approach to offering guidance where member states have competence or legislation where permitted, other countries have varying resources dedicated at the national government or sub-national (regional government) levels. When prosperity is the focus, in some cases regional governments have final decision-making control over issues such as FDI.

When considering the main threats to national resilience and critical infrastructure, countries across the two regions also take different views. While in like-minded liberal democracies, state actors are seen as the main threats, others in the Indo-Pacific view domestic threats as their primary concern. Lastly, for countries in the Indo-Pacific, natural disasters and climate change

are often mentioned more frequently as specific threats.

The EU and countries in the Indo-Pacific thus take differing approaches to common areas of concern within the global digital order. While both regions already cooperate on sharing best practices and national approaches, more can be done. In the space of AI governance, various countries in the Indo-Pacific and the EU are vying for leadership roles in AI regulation and standard-setting.

The EU could engage more with countries in the Indo-Pacific that are predominantly concerned with prosperity (rather than security or ethical concerns) to ensure an inclusive approach. This engagement could focus on concerns in emerging and developing economies, such as issues related to the impact of AI on the workforce in manufacturing-reliant economies. Furthermore, several countries in the Indo-Pacific have not yet developed national AI strategies, which could provide an opportunity for EU and Indo-Pacific countries to help share best practices. Lastly, while all countries acknowledge the importance of AI, Indo-Pacific states also note that unequal access to data, data security and national-government systems digitalisation are specific challenges. Here, international best practices could again help countries facing challenges similar to those that other countries have already overcome.

The EU and Indo-Pacific could also share best practices on transboundary-critical-infrastructure protection. In the Indo-Pacific, this could relate to countries that share natural resources – such as water – that are connected through energy pipelines and infrastructure, or that are linked with critical digital infrastructure, such as submarine cables. This is currently discussed at the minilateral level, which excludes several countries in the Indo-Pacific.

While national investment-screening mechanisms are an important topic of debate in the EU, such mechanisms have been implemented in only a minority of countries in the Indo-Pacific. The EU and countries in the Indo-Pacific could therefore engage with those in the region that take a predominantly prosperity-focused approach

to national innovation and critical-infrastructure development to help them put in place national policies capable of protecting national-innovation strengths while also supporting national socio-economic development.

With regards to disinformation, further cooperation could entail defining disinformation. While countries across the EU and Indo-Pacific share concerns about disinformation, the actors and targets may differ between countries. Governments in the EU and Indo-Pacific have also taken different

approaches to legislating definitions of disinformation. Therefore, states could be encouraged to share more fully best practices regarding legislative and policy approaches to countering disinformation. Lastly, civil society and NGOs are increasingly active in the Indo-Pacific in offering fact-checking and verification services free of charge via web or app platforms. These efforts could be shared across the region and with the EU to further improve upon current policy approaches.

Appendix

Table 5: Selected national statistics

	GDP per capita 2021 (USD)*	Human Development Index 2021**	Population 2023***	Average age****	Mobile phones (per 100 citizens)†	Internet users (% of population)††
Australia	66,916	0.951	26,439,111	38	87.6	89.6
Bangladesh	2,450	0.661	172,954,319	27	98.1	24.8
Bhutan	3,063	0.666	787,424	29		53.5
Brunei	31,449	0.829	452,524	33		95
Cambodia	1,608	0.593	16,944,826	27		
Cook Islands	19,264		17,044	33		
Fiji	4,647	0.730	936,375	27		
French Polynesia	19,915		308,872	34		
Guam			172,952	30		
India	2,274	0.633	1,428,627,663	28	93.1	43
Indonesia	4,333	0.705	277,534,122	30	162.28	53.73
Japan	39,650	0.925	123,294,513	49	115.2	90.22
Kiribati	1,765	0.624	133,515	22		
Laos	2,569	0.607	7,633,779	24		33.8
Malaysia	11,101	0.803	34,308,525	31	143.8	89.56
Maldives	10,366	0.747	521,021	32	245.92	62.93
Marshall Islands	6,111	0.639	41,996	26		
Micronesia	3,573	0.628	544,321	26		
Mongolia	4,510	0.739	3,447,157	27	117.4	62.5
Myanmar	1,089	0.585	54,577,997	30		35.1
Nauru	12,390		12,780	20		
Nepal	1,206	0.602	30,896,590	24	134.41	37.7
New Caledonia	34,994		292,991	34		
New Zealand	48,824	0.937	5,228,100	37	111.1	91.5
North Korea	654		26,160,821	36	12.3	
Pakistan	1,480	0.544	240,485,658	21	79.61	25
Palau	12,084	0.767	18,058	36		
Papua New Guinea	2,673	0.558	10,329,931	22		
Philippines	3,461	0.699	117,337,368	25	113.8	49.8
Samoa	3,919	0.707	225,681	21		
Singapore	66,822	0.939	6,014,723	43	150.1	92
Solomon Islands	2,306	0.564	740,424	19		
South Korea	34,940	0.925	51,784,059	44	111.5	96.51
Sri Lanka	3,918	0.782	21,893,579	33	179.3	35
Taiwan	33,059 †††	0.916 ††††	23,923,276	42	123.33	
Thailand	7,067	0.800	71,801,279	40	105	77.84
Timor-Leste	1,517	0.607	1,360,596	21		29.1
Tonga	4,451	0.745	107,773	22		
Tuvalu	5,370	0.641	11,396	25		
Vanuatu	3,073	0.607	334,506	20		
Vietnam	3,756	0.703	98,858,950	33	79	70.3

Notes: A blank space denotes that no data was available. *Basic Data Selection, United Nations, <https://unstats.un.org/unsd/snaama/Basic>, **'HDI21-22_Statistical_Annex_HDI_Table.xlsx', Human Development Index, https://view.officeapps.live.com/op/view.aspx?src=https%3A%2F%2Fhdr.undp.org%2Fsites%2Fdefault%2Ffiles%2F2021-22_HDI21-22_Statistical_Annex_HDI_Table.xlsx&wdOrigin=BROWSELINK, ***Worldometer, 'Countries in the World by Population' (2023), 16 July 2023, <https://www.worldometers.info/world-population/population-by-country>, **** *Ibid*, *World Population Review, 'Cell Phones by Country 2023', <https://worldpopulationreview.com/country-rankings/cell-phones-by-country>, ††Wisevoter, 'Internet Users by Country', <https://wisevoter.com/country-rankings/internet-users-by-country/>, ††† CEIC, 'Taiwan GDP per Capita', <https://www.ceicdata.com/en/indicator/taiwan/gdp-per-capita#:~:text=Taiwan%20GDP%20per%20Capita%201%20Taiwan%20Gross%20Domestic,a%20record%20low%20of%20140.000%20in%20Dec%201959,> ††††BTI Transformation Index, 'Taiwan Country Report 2022', <https://bti-project.org/en/reports/country-report/TWN>. Source: IISS research

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